



KERALA STATE POLLUTION CONTROL BOARD
കേരള സംസ്ഥാന മലിനീകരണ
ബോർഡ് Pattom P.O.,
Thiruvananthapuram – 695 004
പട്ടം പി.ഒ., തിരുവനന്തപുരം - 695 004



കെഎസ് പിസിബി /532/2024-എഇ - 10

തീയതി : 11-05-2026

"ഭരണഭാഷ - മാതൃഭാഷ"

പ്രേഷിതൻ

പബ്ലിക് ഇൻഫർമേഷൻ ഓഫീസർ
സ്വീകർത്താവ്
സെക്രട്ടറി
സംസ്ഥാന വിവരാവകാശ കമ്മീഷൻ

വിഷയം:- വിവരാവകാശ നിയമം 2005 - സംസ്ഥാന വിവരാവകാശ കമ്മീഷൻ മുമ്പാകെ

ശ്രീ. മനു എ. എസ്. സമർപ്പിച്ച പരാതി - സംബന്ധിച്ച്

സൂചന:- 1. ശ്രീ മനു. എ.എസ് 14.01.2026 തീയതിയിൽ സമർപ്പിച്ച വിവരാവകാശ

നിയമപ്രകാരമുള്ള അപേക്ഷ.

2. പബ്ലിക് ഇൻഫർമേഷൻ ഓഫീസറുടെ 21.01.2026 തീയതിയിലെ കെഎസ്
പിസിബി/532/2024 -എഇ-10 നമ്പർ മറുപടി.

3. ശ്രീ. മനു. എ.എസ് 18.02.2026 തീയതിയിൽ സമർപ്പിച്ച അപ്പീൽ അപേക്ഷ.

4. പബ്ലിക് ഇൻഫർമേഷൻ ഓഫീസർ 06.03.2026 തീയതിയിലെ കെഎസ് പിസിബി/
532/2024 -എഇ-10 നമ്പർ വിശദീകരണക്കുറിപ്പും ഒന്നാം അപ്പീൽ അധികാരിയുടെ
17.03.2026 തീയതിയിലെ പിസിബി/എച്ച്ഒ/സിഇഇ/അപ്പീൽ-01/26 നടപടിക്രമവും

5. 30.04.2026 തീയതിയിൽ ഈ ഓഫീസിൽ ലഭ്യമായ സംസ്ഥാന വിവരാവകാശ
കമ്മീഷന്റെ SIC-CP/217/2026 G4 നമ്പർ കത്ത് dated 13.04.2026

സർ,

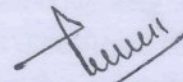
വിഷയത്തിലേക്ക് സൂചനയിലേക്കും അങ്ങയുടെ ശ്രദ്ധ ക്ഷണിക്കുന്നു. സൂചന (1)
പ്രകാരം നൽകിയ വിവരാവകാശ അപേക്ഷയിൽ ആവശ്യപ്പെട്ടിരുന്നത് ചോദ്യം 27 ൽ
അനുബന്ധം (5), A-14011/1/2021-MON നമ്പർ CPCB യുടെ നിർദ്ദേശം ഉൾക്കൊണ്ട 27.04.2021
തീയതിയിലെ കത്ത് നടപ്പിലാക്കുന്നുണ്ടോ എന്നും ഉണ്ട് അല്ലെങ്കിൽ ഇല്ല എന്ന വിവരമാണ്
ആവശ്യപ്പെട്ടത്. CPCB യിൽ ലഭിച്ച ടി കത്ത് പ്രകാരം സംസ്ഥാനത്ത് അന്തരീക്ഷ വായു
ഗുണനിലവാരം പരിപാലിക്കുന്ന നിയുക്ത ഉദ്യോഗസ്ഥർക്ക് ശബ്ദമലിനീകരണം സംബന്ധിച്ച
നഷ്ടപരിഹാര വ്യവസ്ഥ നടപ്പിലാക്കാൻ നിർദ്ദേശം നൽകാനാണ് ബോർഡിന് ലഭിച്ച
ക്രമീയ/നിർദ്ദേശം. അത് പ്രകാരം Inspector General of Police, Social Policing & Traffic ന്
ബോർഡ് 19.05.2021 തീയതിയിൽ അനുബന്ധം (6) (PCB-HO-EE3-OA-681-2018-24-19) നമ്പർ
നിർദ്ദേശം നൽകിയിട്ടുണ്ട്. ടി വിവരം വിശദമായി പരാമർശിച്ച് കൊണ്ട് സൂചന (2) മുഖേന
അപേക്ഷകനെ അറിയിച്ചിരുന്നു. ആദ്യത്തെ വിവരാവകാശ അപേക്ഷയിൽ dispatch details,
correspondence, file notings തുടങ്ങിയവ ആവശ്യപ്പെട്ടിരുന്നില്ല. അപ്പീൽ അപേക്ഷയിൽ



അപേക്ഷകനോട് വിവരവകാശ നിയമപ്രകാരം സെക്ഷനിൽ ലഭ്യമായ ഫയലുകൾ, ഡോക്യുമെന്റ് എന്നിവ പരിശോധിക്കാവുന്നതാണ് എന്ന് അറിയിച്ചിരുന്നു. ഈ വിഷയവുമായി ബന്ധപ്പെട്ട് കൊറോണ കാലത്ത് നൽകിയ ഇമെയിൽ, തുടർന്നുള്ള കത്തിടപാടുകൾ, ഇ-ഓഫീസ് ഫയൽ മുഖേന നടന്ന മറ്റു കത്തിടപാടുകൾ ഫയൽ നോട്ട് എന്നിവ അങ്ങയുടെ അറിവിലേക്കായി നൽകുന്നു. ചോദ്യം 28 പ്രകാരം അനുബന്ധം (6) ബോർഡ് നൽകിയ 19.05.2021 തീയതിയിലെ PCB-HO-EE3-OA-681-2018-24-19 നമ്പർ നിർദ്ദേശം പോലീസ് നടപ്പിലാക്കിയിട്ടുണ്ടോ എന്നും ഉണ്ട് അല്ലെങ്കിൽ ഇല്ല എന്ന വിവരമാണ് ആവശ്യപ്പെട്ടത്. ഈ സെക്ഷനിൽ ലഭ്യമായ ഡോക്യുമെന്റുകൾ പ്രകാരം ശബ്ദമലിനീകരണം സംബന്ധിച്ച നഷ്ടപരിഹാര വ്യവസ്ഥ നടപ്പിലാക്കിയിട്ടില്ല എന്നാണ് അപേക്ഷകനെ അറിയിച്ചത്. ചോദ്യം 29 പ്രകാരം അനുബന്ധം (7) നടപ്പിലാക്കിയിട്ടുണ്ടോ എന്നും ഉണ്ട് അല്ലെങ്കിൽ ഇല്ല എന്ന വിവരമാണ് ആവശ്യപ്പെട്ടിരിക്കുന്നത്. അനുബന്ധം (7) എന്നത് വ്യക്തമായിരുന്നില്ല ആയത് അനുബന്ധം (6) തന്നെയാണ് എന്നും അനുമാനിച്ചാണ് ഈ പിഎഫെ മറുപടി നൽകിയത്.

അപ്രകാരം ഈ പിഎഫെ യുടെ കയ്യിൽ ലഭ്യമായ രേഖകൾ പ്രകാരമാണ് മറുപടി നൽകിയിരിക്കുന്നത്. വിശദീകരണം പരിശോധിച്ചു രണ്ടാം അപ്പീൽ തീർപ്പാക്കണം എന്ന് അപേക്ഷിക്കുന്നു

വിശ്വസ്തതയോടെ,



ജോസ്മോൻ ജെ.

പബ്ലിക് ഇൻഫർമേഷൻ ഓഫീസർ
എൻവയൺമെന്റൽ എഞ്ചിനീയർ-4
മൊബൈൽ നമ്പർ : 9447975715
e-mail id : kspcbaudit@gmail.com

അനുബന്ധം : മേൽ പ്രകാരം

ശ്രീ. കൃഷ്ണൻ എം. എൻ.,
അപ്പീൽ അധികാരി & ചീഫ് എൻവയൺമെന്റൽ എഞ്ചിനീയർ,
ഹെഡ് ഓഫീസ്,
കേരള സംസ്ഥാന മലിനീകരണ നിയന്ത്രണ ബോർഡ്,
പ്ലാമുട്, പട്ടം,
തിരുവനന്തപുരം - 695004
ഫോൺ നമ്പർ: 9447975719
e-mail id: hokspcbcee@gmail.com

പകർപ്പ് : ✓ Sri. Manu A. S.

Meeharam Punukkannoor,
Perumpuzha P O 691504





Kerala PCB <pcbhorulesee3@gmail.com>

Final direction under Noise Rules

2 messages

Kerala PCB <pcbhorulesee3@gmail.com>

Wed, May 19, 2021 at 9:27 PM

To: kspcbholegal@gmail.com

Madam,

Kindly find the signed copy of direction and annexures. Kindly send the same to Police Department from Chairman's mail

Regards,**KERALA STATE POLLUTION CONTROL BOARD,
HEAD OFFICE, THIRUVANANTHAPURAM.****3 attachments**
Final direction-noise.pdf
901K

 CPCB Report in O.A. No. 519 of 2016.pdf
6999K

 limit-d.g.sets.pdf
7165K

Kerala PCB <pcbhorulesee3@gmail.com>

Thu, May 20, 2021 at 9:46 PM

To: pcbro tvn <pcbrotvm@gmail.com>, RO ERNAKULAM <pcbrokekm@gmail.com>, "Cc:" <pcbrokekd@gmail.com>, KSPCB DO TVPM <kspcbdotvpm@gmail.com>, kspcbklm@gmail.com, Pollution Control Board Kerala <kspcbpta@gmail.com>, ALPY PCB <alpy.pcb@gmail.com>, DO KOTTAYAM <keralapcb_ktm@yahoo.com>, Kspcb Idukki <kspcbidukki221590@gmail.com>, PCB EKM DO-1 <pcbdo1@gmail.com>, PCB Perumbavoor <pcbdo2ekm@gmail.com>, Engineer <esceloor@yahoo.co.in>, kspcbtsr <kspcbtsr@gmail.com>, "PALAKKAD:KSPCB" <kspcbpalakkad@gmail.com>, kspcb mlpm <kspcbmlpm@gmail.com>, pcbdo kkd <pcbdo kkd@gmail.com>, DO KANNUR <kspcbdoknr@gmail.com>, Kspcb Wayanad <pcbway@gmail.com>, Ksdpcb New <ksdpcbnew1@gmail.com>

----- Forwarded message -----

From: Kerala PCB <pcbhorulesee3@gmail.com>

Date: Wed, May 19, 2021 at 9:27 PM

Subject: Final direction under Noise Rules

To: <kspcbholegal@gmail.com>

Sir/Madam,

Please see the attached directions to the Police Department . It is for your information and further necessary action.

Regards,**KERALA STATE POLLUTION CONTROL BOARD,
HEAD OFFICE, THIRUVANANTHAPURAM.**

[Quoted text hidden]

3 attachments
Final direction-noise.pdf
901K

 CPCB Report in O.A. No. 519 of 2016.pdf
6999K

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5/7/26, 12:30 PM

Gmail - Final direction under Noise Rules

 limit-d.g.sets.pdf
7165K



KERALA STATE POLLUTION CONTROL BOARD

Pattom P.O., Thiruvananthapuram - 695 004

PCB/HO/EE3/NGT/O.A.NO.681/2018/24/19(M)

Date:19/05/2021

DIRECTION UNDER SECTION 5 OF ENVIRONMENT (PROTECTION)ACT,1986 REGARDING IMPLEMENTATION OF ENVIRONMENT COMPENSATION REGIME OF NOISE POLLUTION.

WHEREAS under Sec17(1) of the Air (Prevention & Control of Pollution)Act 1981, one of the functions of the State Pollution Control Boards is to plan a comprehensive programme for the prevention and control or abatement of air pollution in the State and to secure the execution thereof;

WHEREAS under Sec 2(a) of theAir (Prevention & Control of Pollution)Act 1981, noise is defined as air pollutant;

WHEREAS as per Rule 4(2) of theNoise Pollution(Regulation and Control)Rules,2000 of Environment (Protection) Act, 1986, the designated authority is responsible for the enforcement of noise pollution control measures and the due compliance of ambient air quality standards in respect of noise;

WHEREAS Sec 15(1) of the Environment (Protection) Act, 1986 states that "Whoever fails to comply with or contravenes any of the provisions of this Act, or the Rules made or orders or directions issued there under, shall, in respect of each such failure or contravention, be punishable with imprisonment for a term which may extend to five years or with fine which may extend to one lakh rupees, or with both, and in case the failure or contravention continues, with additional fine which

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may extend to five thousand rupees for every day during which such failure or contravention continues after the conviction for the first such failure or contravention”;

WHEREAS Sec 9(3) of Environment (Protection) Act, 1986 states that “The expenses if any, incurred by any authority or agency with respect to the remedial measures referred to in sub-section (2), together with interest (at such reasonable rate as the Govt. May, by order, fix) from the date when a demand for the expenses is made until it is paid, may be recovered by such authority or agency from the person concerned as arrears of land revenue or of public demand”;

WHEREAS in the matter of O.A.No. 519/2016, 496/2018, 196/2018 and 197/2018, the Hon’ble NGT directed Central Pollution Control Board on 1-8-2019 that, “CPCB needs to devise the scale of compensation to be adopted as a measure to enforce the Rule 4(2) of Noise Pollution(Regulation and Control)Rules,2000 of Environment (Protection) Act, 1986 by the concerned Authority on the basis of “Polluter Pays” Principle. Though violation of the rules like Noise Pollution(Regulation and Control)Rules,2000 of Environment (Protection) Act, 1986 here, is a criminal offence punishable under Section 15 of the Environment (Protection) Act, 1986, with imprisonment up to 5 year and fine up to Rs.1 lakh, since prosecution of a non-cognizable offence may have its own limitations, civil liability on “Polluter Pays” Principle can be invoked by the enforcement regulatory authority as per the guidelines which may be laid down by the CPCB. The scale of compensation may have reference to the extent and severity of default and whether the default is a repeated offence”;

WHEREAS in compliance to the directions of Hon’ble NGT, CPCB prepared scale of compensation for violation of the Noise Pollution(Regulation and Control)Rules,2000 as follows and submitted before the Hon’ble NGT (Copy attached as Annexure);

Teena Goy
Prerna
Foreman

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Date: 11/05/2026



STN
SILENCE the NOISE

Sl.No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulters		Action to be taken by designated Authorities
1	Use of loudspeakers/Public address system(1) (Clause 5(1)-5(2), 6(I ,ii,iii and v) ⁽¹⁻⁵⁾	Rs. 10,000/-		Seizure
2	Violation with respect to Generator set Norms(Standards attached as Annexure)			
a)	D.G.sets more than 1000 KVA	Rs.1,00,000/-	Sealing of D.G.sets	
b)	D.G.sets 62.5 KVA to 1000 KVA	Rs.25,000/-		
c)	D.G.sets upto 62.5 KVA	Rs.10,000/-		
3	Violation of use of sound emitting construction equipment ⁽⁶⁾	Rs.50,000/-	Seizure/Sealing of equipment	
4	Bursting of firecrackers beyond the prescribed time limit (Hon'ble Supreme Court order & Clause 5A ⁽²⁾ & 6(iv) ⁽⁷⁻⁸⁾			
4(1)	Violation by individuals/household	Residential/Commercial/Mixed Zone Rs.1000/-	Silence Zone Rs.3000/-	Fine to be paid by the individual
4(2)	Violation during possession a. Public Rallies b. Barat during marriage c. Religious events	Rs.10,000/-	Rs.20,000/-	Fine to be paid by the Organizer
4(3)	First violation within a fixed premises a. Function organized by RWA b. Marriage function c. Public function d. Institution function e. Banquet hall f. Open ground functions	Rs.20,000/-	Fine to be paid by organizer and owner of the place	
4(4)	Second violation within a fixed premises	Rs.40,000/-		

P. S. J. (K. N. S. J.)

PUBLIC INFORMATION OFFICER
TAMIL NADU STATE POLLUTION CONTROL BOARD
M. P. O. - THIRUVANANTHAPURAM-695 004

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	a. Function organized by RWA		
	b. Marriage function		
	c. Public function		
	d. Institution function		
	e. Banquet hall		
	f. Open ground functions		
4(5)	More than two violations within a fixed premises	Rs.1,00,000/- and action under EP Act	Sealing of premises
	a. Function organized by RWA		
	b. Marriage function		
	c. Public function		
	d. Institution function		
	e. Banquet hall		
	f. Open ground functions		

Note:

1. Clause 5(1): A loud speaker or a public address system shall not be used as except after obtaining written permission from the Authority.
2. Clause 5(2): A loud speaker or a public address system or any sound producing instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency
3. Clause 6(i): Playing any music or using any sound amplifiers in any place covered under the silence zone/area is prohibited.
4. Clause 6(ii): Beating a drum or tom-tom or blows a horn either musical or pressure or trumpet or beats or sounds any instrumenting any place covered under the silence zone/area are prohibited.
5. Clause6(iii): Exhibits any mimetic musical or other performances of a nature to attract crowds in any place covered under the silence zone/area are prohibited.
6. Clause5(A)(3): Sound emitting construction equipment shall not be used or operated during night time in residential areas and silence zones.
7. Sound emitting fire crackers shall not be burst in silence zones or during night time in each zone.
8. As per directions of Hon'ble Supreme Court, following time limits are prescribed for bursting fire crackers;

Diwali - 8 PM - 10 PM

Gurupurb -4 AM -5 AM and 9 PM – 10 PM

New Year and Christmas- 11.55 PM-12.30 PM
9. It may be noted that imposition of fine for notification of Rule 5A (1) falls within the purview of Motor Vehicles Rules, 2019.

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Joshi-Kon-7*



Public Information Officer
MHA, AIRC Pollution Control Board
Plot No. 12, Industrial Area, Phase-III, Gurgaon-122 001

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WHEREAS in the matter of O.A.No. 519/2016, 496/2018, 196/2018 and 197/2018, Hon'ble NGT further directed CPCB that the compensation scale laid down by the CPCB may be enforced throughout India. The CPCB may issue appropriate statutory orders for the purpose for being complied within all the States;

WHEREAS CPCB vide letter no. A-14011/1/2021-MON dated 27.04.2021 directed the undersigned to direct the designated authorities of the State to implement scale of compensation for violation of Noise Pollution(Regulation and Control)Rules,2000 as accepted by the Hon'ble NGT;

ANDWHEREAS as per the Notification G.O. (P) No. 111/2002 (S.R.O.No.608/2002) dated 29.07.2002, Govt. Of Kerala designated the District Magistrates, the Commissioner of police/ the Superintendents of Police and the Deputy Superintendent of Police (Sub divisional officers) as the authorities under the Noise Pollution(Regulation and Control)Rules,2000 for the maintenance of ambient air quality standards in respect of noise pollution within their respective jurisdiction in the State;

NOW THEREFORE you are hereby directed to implement scale of compensation for violation of Noise Pollution(Regulation and Control)Rules,2000 as accepted by the Hon'ble NGT;

The status of the action plan and its implementation shall be submitted to the Board within 30 days of receipt of this Direction for submitting to the Central Pollution Control Board.

FOR AND ON BEHALF OF
KERALA STATE POLLUTION CONTROL BOARD

Sd/-

CHAIRMAN

Jose Men J

PUBLIC INFORMATION OFFICER
KERALA STATE POLLUTION CONTROL BOARD
P.O. SECRETARIAT, THIRUVANANTHAPURAM, KERALA

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Date: 11/05/2026



STN
SILENCE the NOISE.in

To

The Inspector General of Police
Social Policing and Traffic
Police Head Quarters,
Vazhuthacaud, Thiruvananthapuram

- Copy to: 1. The Chairman, Central Pollution Control Board (with covering letter)
2. The Additional Chief Secretary, Environment Department, (with covering letter)
3. Chief Environmental Engineer, Regional Office, TVM/EKM/KKD
4. Environmental Engineer, AllDOs
5. All Technical officers in HO

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Date: 11/05/2024

BEFORE THE HON'BLE NATIONAL GREEN TRIBUNAL,

Principal Bench, New Delhi

Original Application No. 519/2016

With

Original Application No. 496/2018

In the matter of:-

Hardeep Singh & Ors.

Applicant(s)

VS.

SDMC & Ors.

Respondent(s)

With

Akhand Bharat Morcha

Applicant

VS.

Union of India & Ors.

Respondent(s)

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Hardeep Singh & Ors.
VS E MORCHA

PUBLIC INFORMATION OFFICER
NATIONAL STATE POLLUTION CONTROL BOARD
1st Floor, P.O., THIRUVANANTHAPURAM-695 004

Place: Delhi
Dated: 12.06.2020

(N.K. Gupta)

(N.K. Gupta)
Scientist - F
Central Pollution Control Board
Parivesh Bhawan, East Arjun Nagar,
Delhi-110032

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REPORT ON

"SCALE OF COMPENSATION TO BE RECOVERED FOR
VIOLATION OF NOISE POLLUTION (REGULATION AND
CONTROL) RULES, 2000"

SUBMITTED IN COMPLIANCE TO HON'BLE NATIONAL
GREEN TRIBUNAL (NGT) ORDER DATED 15.11.2019
(uploaded on 20.11.2019)

IN THE MATTER O.A NO. 519 OF 2016 TITLED; HARDEEP
SINGH & ORS VS SDMC & ORS

WITH

O.A NO. 496 OF 2018

Akhand Bharat Morcha

Versus

Union of India & Ors.



CENTRAL POLLUTION CONTROL BOARD
(Ministry of Environment, Forest & Climate Change)
Parivesh Bhawan East Arjun Nagar,
Delhi-110032

June, 2020

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Date: 4/05/2026

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PUBLIC INFORMATION OFFICER
CENTRAL POLLUTION CONTROL BOARD
ATTENTION: THIRUVANANTHAPURAM



1.0 BACKGROUND

Hon'ble NGT vide order dated 01/08/2019 in the matter of O.A No. 519 of 2016 titled; Hardeep Singh &Ors Vs SDMC &Ors directed as:

"The CPCB needs to devise the scale of compensation to be adopted as a measure to enforce the Rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000 by the concerned authority on the basis of 'Polluter Pays' principle. Though violation of the rules like the Noise Rules here, is a criminal offence punishable under Section 15 of the Environment (Protection) Act, 1986 with imprisonment upto five years and fine upto Rs. 1 lakh, since prosecution of a non-cognizable offence may have its own limitations, civil liability on 'Polluter Pays' principle can be invoked by the enforcement regulatory authority as per the guidelines which may be laid down by the CPCB. The scale of compensation may have reference to the extent and severity of default and whether the default is a repeated offence."

In compliance to above, CPCB submitted its report on 14/11/2019 Copy of report attached as Annexure-I. Hon'ble NGT vide order dated 15.11.2019 (uploaded on 20.11.2019) further directed CPCB as follows:

"We are of the view that compensation for bursting of crackers at serial No. 4 needs to be suitably revised and needs to be different for different classes of defaulters and frequencies of default. Further, the CPCB has suggested that compensation should be 2-3 times for second and third violations accompanied by withdrawal of permission for installation/operation for their equipment."

The CPCB may also lay down stringent compensation for tampering with the sound limiters to ensure that the same is not restored to. Let compliance reports be filed by CPCB, Department of Environment, DPCC and Special Commissioner of Police, Delhi by 31.03.2020 by email at judicial-ngt@gov.in."

2.0 COMPLIANCE

In compliance to Hon'ble NGT directions, meeting of the committee for compliance of NGT directions was held on 05th March 2020. Committee agreed for revising compensation for bursting of fire crackers for different classes of defaulters and frequencies of default as per directions of Hon'ble NGT. After detailed discussion modified scale of compensation for violation of Noise Rules, 2000 finalized by committee is tabulated in Table below:

Table 1: Enlistment of Violation of Noise Rules and their respective Scale of compensation.

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Sl. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
4(4)	Second Violation within a fixed Premises: a. Function organized by RWA, b. Marriage Function c. Public Function d. Institution function e. Banquet Hall Open ground functions	40,000	
4(5)	More than Two Violation within a fixed Premises: a. Function organized by RWA, b. Marriage Function c. Public Function d. Institutional function e. Banquet Hall Open ground functions	1,00,000 and action under EP Act.	Sealing of Premises

Note:

1. Clause 5(1): A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.
2. Clause 5(2): A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency.
3. Clause 6 (i) Playing any music or uses any sound amplifiers in any place covered under the silence zone/area are prohibited.
4. Clause 6(ii): Beating a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrumenting any place covered under the silence zone/area are prohibited.
5. Clause 6(iii): Exhibits any mimetic, musical or other performances of a nature to attract crowds in any place covered under the silence zone/area are prohibited.
6. Clause 5(A) (3): Sound emitting construction equipment shall not be used or operated during night time in residential areas and silence zones
7. Sound emitting fire crackers shall not be burst in silence zone or during night time in each zone;
8. As per directions of Hon'ble Supreme court, following time limits are prescribed for bursting fire crackers:
Diwali: 8pm to 10pm
Gurpurb: 4am to 5am and 9pm to 10pm
New Year and Christmas: 11.55 P.M to 12.30 A.M

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Sl. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
9.	<i>It may be noted that imposition of fine for notification of Rule 3A(1) falls within the purview of Motor Vehicle Rules, 2019</i>		

CPCB also deliberated on the issue of compensation to be imposed for tampering of sound limiters. In view of the committee member's suggestions, it is concluded that:

1. Sound Limiter working is not full proof and it is additional unit in addition to Loudspeakers which can be easily Plug in or Plug Out, Sound limiters cannot be used for ensuring regulations.
2. Central Pollution Control Board is in process of framing source specific standards for regulations of Loud Speakers and Public Address System for specific uses.

True
Sole Member

Public Information Officer
Central Pollution Control Board
New Delhi-110004



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REPORT ON

"SCALE OF COMPENSATION TO BE RECOVERED FOR
VIOLATION OF NOISE POLLUTION (REGULATION AND
CONTROL) RULES, 2000"

SUBMITTED IN COMPLIANCE TO HON'BLE NATIONAL
GREEN TRIBUNAL (NGT) ORDER DATED 01.08.2019
IN THE MATTER O.A NO. 519 OF 2016 TITLED; HARDEEP
SINGH & ORS VS SDMC & ORS



CENTRAL POLLUTION CONTROL BOARD
(Ministry of Environment, Forest & Climate Change)
Parivesh Bhawan East Arjun Nagar,
Delhi-110032

October, 2019

Handwritten signature:
Joshi K.M.N.

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1.0 BACKGROUND

Hon'ble NGT vide order dated 01/08/2019 in the matter of O.A No. 519 of 2016 titled; Hardeep Singh &Ors Vs SDMC &Ors directed as:

"The CPCB needs to devise the scale of compensation to be adopted as a measure to enforce the Rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000 by the concerned authority on the basis of 'Polluter Pays' principle. Though violation of the rules like the Noise Rules here, is a criminal offence punishable under Section 15 of the Environment (Protection) Act, 1986 with imprisonment upto five years and fine upto Rs. 1 lakh, since prosecution of a non-cognizable offence may have its own limitations, civil liability on 'Polluter Pays' principle can be invoked by the enforcement regulatory authority as per the guidelines which may be laid down by the CPCB. The scale of compensation may have reference to the extent and severity of default and whether the default is a repeated offence."

2.0 LEGAL FRAME WORK WITH RESPECT TO NOISE POLLUTION (REGULATION AND CONTROL) RULES, 2000

2.1 Existing rules and standards

- Noise pollution (Regulation and Control) Rules, 2000 are notified by MoEF & CC and responsibilities and restrictions are defined with authorities for further implementation.
- Standards have been fixed for most of the major sources of noise, as well as ambient noise level in different category areas such as Silence Zone, Commercial, Industrial and Residential Area. The maximum permissible levels of Ambient Noise in Indian Cities notified by Ministry of Environment & Forests vide its notification no. S.O. 123 (E), (14-02-2000), Noise Pollution (Regulation & Control) Rules, 2000 is as follows:

Area Code	Category of Area/Zone	Limit in dB (A) Leq	
		Day	Night
A	Industrial Area	75	70
B	Commercial Area	65	55
C	Residential Area	55	45
D	Silence Zone	50	40

Note:

1. Day time shall mean from 6 AM to 10 PM.
2. Night time shall mean from 10 PM to 6 AM.
3. Silence Zone is defined as areas up to 100 meters around such premises as hospitals, educational institutes and courts. The Silence Zones are to be declared by competent authority. Use of Vehicular horns, loudspeaker and bursting of crackers shall be banned in these

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Area Code	Category of Area/Zone	Limit in dB (A) Leq	
		Day	Night
	zones.		
	4. Mixed categories of areas may be declared as one of the four above mentioned categories by the competent authority. *dB(A) Leq denotes the time weighted average of the level of sound in decibels on scale A which is relatable to human hearing. A "decibel" is a unit in which noise is measured. "A", in dB(A) Leq, denotes the frequency weighting in the measurement of noise and corresponds to frequency response characteristics of the human ear.		
	5. Leq: It is an energy mean of the noise level over a specific period		

- Under Noise Pollution (Regulation and Control) Rules, 2000, responsibilities are vested with State Governments, District Magistrate, Police Commissioner, or any other officer not below the rank of Deputy Superintendent of Police, as per detail given below:

- Restriction on the use of Loud Speakers/Public Address system.
- Restriction on the use of Horns, Sound emitting construction equipment and bursting of Fire crackers.
- Prohibition of continuance Music Sound or Noise.

Noise limits are notified under EPA Rules, 1986 and other provisions of Noise Rules, 2000 are listed below:

- Noise limits for Automobiles (Free Field) at one meter in dB (A) at the Manufacturing Stage. Limits are attached as Annexure-I.
- Noise rules for Domestic Appliances and construction Equipment's at the manufacturing stage. Standards are attached as Annexure-II.
- Noise standards for Fire Crackers. Standards are attached as Annexure-III.
- Noise Limit for Generator sets run with Petrol or Kerosene. Standards are attached as Annexure-IV
- Noise Limit for Generator Sets run with Diesel. Standards are attached as Annexure-V
- Noise limit for CNG and or LPG dual fuel/biofuel/dedicated generator sets. Standards are attached as Annexure-VI

2.2 Penal provision for violation of Noise Rules

- As per rule 7 (2), it is mentioned that Authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

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Joseph

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- Noise Rules are defined in Environment (Protection) Act, 1986. Section 15 of EPA, 1986 refers to penalty and action to be taken against violators and same is mentioned below:

Penalty for contravention of the provisions of the act and the rules, orders and directions -

1. Whoever fails to comply with or contravenes any of the provisions of this Act, or the rules made or orders or directions issued thereunder, shall, in respect of each such failure or contravention, be punishable with imprisonment for a term which may extend to five years with fine which may extend to one lakh rupees, or with both, and in case the failure or contravention continues, with additional fine which may extend to five thousand rupees for every day during which such failure or contravention continues after the conviction for the first such failure or contravention.
2. If the failure or contravention referred to in sub-section (1) continues beyond a period of one year after the date of conviction, the offender shall be punishable with imprisonment for a term which may extend to seven years.

3.0 SCALE OF COMPENSATION FOR VIOLATION OF NOISE RULES

- Source of noise pollution have been identified based on provisions mentioned in section 2.1.
- 10-25 % of cost of instrument has been considered as compensation for violations of provisions of noise rules and repeated violators to be imposed fine which has deterrent effect.
- Accordingly, compensation to be paid by the defaulter and action to be taken by authority for violations of Noise Rules by usage of equipment like Public Address System, Construction Equipment, Generator Sets and Music DJ system are recommended as per details given in Table 1.

Table 1: Enlistment of Violation of Noise Rules and their respective Scale of compensation.

Sl. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
1.	USE OF LOUD SPEAKERS / PUBLIC ADDRESS SYSTEM ¹	₹ 10,000	Seizure

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Sl. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
	(Clause 5(1)- 5(2), 6(i, ii, iii and v) ¹⁻⁵		
2.	VIOLATION WRT GENERATOR SETS NORMS(Standards attached as Annexure -IV to VI)		
a)	DG sets more than 1000 KVA	₹ 1,00,000	Sealing of DG sets
b)	DG sets 62.5 to 1000 KVA	₹ 25,000	
c)	DG sets up to 62.5 KVA	₹ 10,000	
3.	VIOLATION OF USE OF SOUND EMITTING CONSTRUCTION EQUIPMENTS ⁶	₹ 50,000	Seizure / Sealing of Equipment
4.	Bursting of Firecrackers beyond the prescribed time limit prescribed (Hon'ble Supreme Court and Clause 5A (2) and 6 (iv) ⁷⁻⁸	₹ 1000	

Note:

1. Clause 5(1): A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.
2. Clause 5(2): A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency.
3. Clause 6 (i) Playing any music or uses any sound amplifiers in any place covered under the silence zone/area are prohibited.
4. Clause 6(ii): Beating a drum or tom-tom or blows a horn either musical or pressure or trumpet or beats or sounds any instrument in any place covered under the silence zone/area are prohibited.
5. Clause 6(iii): Exhibits any mimetic, musical or other performances of a nature to attract crowds in any place covered under the silence zone/area are prohibited.
6. Clause 5(A) (3): Sound emitting construction equipment shall not be used or operated during night time in residential areas and silence zones
7. Sound emitting fire crackers shall not be burst in silence zone or during night time in each zone;
8. As per directions of Hon'ble Supreme court, following time limits are prescribed for bursting fire crackers:

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Sl. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
	<i>Divulsi: 8pm to 10pm Carpurbi: 4am to 5am and 9pm to 10pm New Year and Christmas: 11.55 P.M to 12.30 A.M</i>		
9.	<i>It may be noted that imposition of fine for notification of Rule 5A(1) falls within the purview of Motor Vehicle Rules, 2019</i>		

4.0 LIMITATION OF NOISE RULES WITH RESPECT TO LOUDSPEAKER

- Existing standards for loud speaker defined under clause 5(4) of Noise Rules, 2000 states that Noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB(A) above the ambient noise standards for the area or 75 dB(A) whichever is lower.
- In order to verify compliance, ambient noise monitoring is to be carried out for 16 hours (day time) and violation by specific source of noise can not be identified due to background noise. Further, as impact of the noise source; duration of which mostly varies from a few seconds to few minutes gets leveled when monitoring for long duration (16 hours) is carried out.
- Recently, CPCB has carried out demonstration of Sound limiters and it was found that sound limiter is not a full proof system and same can easily tamper with. It is difficult for authorities to set limits for sound limiter in absence of source standards for loudspeaker while granting permission for public address system.
- Source specific standards have been notified for firecrackers, Generator sets, construction equipments, vehicles etc. However, source specific standards for Loudspeakers and Public Address System (PAS) yet to be framed.

In view of (i-iv) above, it is suggested that source specific standards be framed for Loud speaker and Public Address System with specific usage type

5.0 RECOMMENDATIONS

- Designated authorities defined as per clause 2 (c) of Noise Pollution (Regulation and Control) Rules, 2000 shall imposed penalty and take necessary action against the defaulters as per details given in Table 1.

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AIR AND NOISE POLLUTION CONTROL BOARD
THERUVANATHAPURAM-635 004

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2. The compensation to be paid shall be 02 times / 03 times the original fine for the second and third violation respectively and permission for installation / operation of the equipment shall be withdrawn thereafter.

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Item No. 01 to 04

Court No. 1

**BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI**

Original Application No. 519/2016
WITH

Original Application No. 496/2018
(M.A. No. 1159/2018)

WITH

Original Application No. 196/2018
WITH

Original Application No. 197/2018

Hardeep Singh & Ors.

Applicant(s)

Versus

SDMC & Ors.

Respondent(s)

WITH

Akhand Bharat Morcha

Applicant(s)

Versus

Union of India & Ors.

Respondent(s)

Date of hearing: 15.11.2019

Date of uploading of order: 20.11.2019

CORAM: HON'BLE MR. JUSTICE ADARSH KUMAR GOEL, CHAIRPERSON
HON'BLE MR. JUSTICE S.P WANGDI, JUDICIAL MEMBER
HON'BLE MR. JUSTICE K. RAMAKRISHNAN, JUDICIAL MEMBER
HON'BLE DR. HAGIN NANDA, EXPERT MEMBER
HON'BLE MR. SAIBAL DASGUPTA, EXPERT MEMBER

ORDER

1. This order may be read in continuation of order dated 01.08.2019. The subject matter for consideration is the failure of the statutory authorities in Delhi in controlling noise pollution as per statutory mandate of Noise Pollution (Regulation and Control) Rules, 2000 (Noise Rules). The matter has been dealt with earlier by this Tribunal in the light of judgment of Delhi High Court in *Free Legal Aid Cell Vs.*

*True
Joshi*

REGISTRATION OFFICER
NATIONAL GREEN TRIBUNAL
10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100

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Government of NCT of Delhi¹ and of the Hon'ble Supreme Court in In Re: Noise Pollution - Implementation of the Laws for restricting use of loud speakers and high volume producing sound systems.²

2. The grievance of the Applicants is that in spite of the above orders, unsatisfactory state of affairs continues. By use of DJ systems, music systems, public address systems etc. during weddings or other functions, noise was being created at odd hours adversely affecting the health of the citizens. Reference is made to the order of this Tribunal dated 18.12.2012³ in *Supreme Court Group Housing Vs. All India Panchayat Parishad, Original Application No. 34/2011*, directing establishment of call centers, drawing up of Standard Operating Procedure (SOP) regarding control of noise pollution and banning the use of generator sets of capacity of 5 KVA and above in the residential areas between 10 pm to 6 am, apart from other directions.
3. The steps taken pursuant to the earlier orders of this Tribunal, included the issuance of orders by the Commissioner of Police, DCP (Traffic) and SDM (East Delhi). Action plans were placed before the Tribunal for setting up of call centers and drawing up of detailed SOP for controlling noise pollution. The Ministry of Environment, Forest and Climate Change (MoEF&CC) amended the Noise Rules on 10.01.2010 prohibiting loud speakers, public address systems at night time except in closed premises. The DCP (Traffic) filed a status report indicating the number of challans etc.
4. In *Original Application No. 519 of 2016*, the Tribunal, vide order dated 27.09.2018, held that steps taken were hardly effective on the

*See AIR 2001 Delhi 455
(2005) 5 SCC 733*

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ground. The problem of noise pollution continued. Directions in the order of the Hon'ble Supreme court in *In Re: Noise Pollution - Implementation of the Laws for restricting use of loud speakers and high volume producing sound systems*³ had not been fully complied with. Accordingly, the Tribunal directed the Chief Secretary, Delhi, the Commissioner of Police, Delhi and the Delhi Pollution Control Committee (DPCC) to take steps for enforcing the directions of the Hon'ble Supreme Court and the Noise Rules with regard to control of use of loud speakers, control of vehicular noise and creation of awareness. The Commissioner of Police was to nominate a DCP and the Chief Secretary was to nominate a SDM who were to meet once in every week to take stock of the situation. They were to set up an exclusive website and dedicated helpline, apart from other steps. Report of compliance was to be filed.

5. In *Original Application No. 496/2018*, *Original Application No. 196/2018* and *Original Applicant No. 197/2018* also, similar grievance against non-enforcement of the Noise Rules in Delhi have been raised. Vide order dated 10.08.2018 in O.A No. 496/2018, joint inspection was directed to be conducted and report was directed to be furnished. The report dated 31.10.2018 was considered on 14.02.2019 along with O.A No. 196/2018 and O.A No. 197/2018 and directions were issued to take remedial action. The Tribunal also directed the presence of DCP (East), DCP (Shahdara) and DCP (South) with action plans. O.A No. 496/ 2018, O.A No. 196/2018 and O.A No. 197/2018 were again taken up on 14.03.2019, along with O.A 519/2016 and after interaction with the officers who are to enforce the Noise Rules, further directions were issued to identify and map

³Supra at 2 and (2005) 5 SCC 128



hotspots, install noise measuring device on the devices causing high noise level, conduct surveillance and monitoring and conduct awareness and coordination with RWAs. The Commissioner of Police, Delhi was also to monitor and furnish a report to this Tribunal.

6. Noise is an underestimated threat that can cause a number of short- and long-term health problems. It is increasingly becoming a potential hazard to health, physically and psychologically, and affects the general well-being of an individual. ⁴Excessive noise interferes with people's daily activities at school, at work, at home, and during leisure time. It can disturb sleep, cause cardiovascular and psychophysiological effects, reduce performance and provoke annoyance responses and changes in social behavior. ⁵ Environmental noise exposure is responsible for a range of health effects, including increased risk of ischaemic heart disease as well as sleep disturbance, cognitive impairment among children, annoyance, stress-related mental health risks, and tinnitus. ⁶ According to a 2007 WHO estimate, almost six per cent people in India suffer from hearing loss. ⁷ WHO says that exposure to excessive noise is one of the causes for loss of hearing. ⁸ Delhi was the second worst city for noise pollution, followed by Cairo, Mumbai, Istanbul and Beijing. ⁹ Residents of Vienna, Austria have the least amount of hearing loss proportionate to their age whilst citizens of Delhi, India have the most. ¹⁰

⁴Community Noise Pollution in Urban India: Need for Public Health Action, <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC345577/>

⁵<http://www.euro.who.int/en/health-topics/environment-and-health/noise/solutions>

⁶<http://www.who.int/sustainable-development/transport/health-impacts/noise/en/>

⁷<http://www.who.int/healthinfo/statistics/best-hearing-loss/en/> <https://www.downtoearth.org.in/news/health/india-air-level-of-noise-pollution-in-dellhi-is-a-dreadful-study-51473>

⁸<https://www.who.int/en/news-room/fact-sheets/detail/deafness-and-hearing-loss>

⁹<http://www.weforum.org/agenda/2017/03/these-are-the-cities-with-the-worst-noise-pollution/>

¹⁰<https://www.theguardian.com/global/2015/mar/03/when-world-gets-quiet>

¹¹<https://www.theguardian.com/global/2015/mar/03/when-world-gets-quiet>

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7. In *Re: Ramlila Maidan Incident*¹¹, it was observed:

".....(301). Deprivation of sleep has tumultuous adverse effects. It causes a stir and disturbs the quiet and peace of an individual's physical state. A natural process which is inherent in human being if disturbed obviously affects basic life. It is for this reason that if a person is deprived of sleep, the effect thereof, is treated to be torturous. To take away the right of natural rest is also therefore violation of a human right. It becomes a violation of a fundamental right when it is disturbed intentionally, unlawfully and for no justification. (318). Thus, it is evident that right of privacy and the right to sleep have always been treated to be a fundamental right like a right to breath, to eat, to drink, to blink, etc. (327). An individual is entitled to sleep as comfortably and as freely as e breathes. Sleep is essential for a human being to maintain the delicate balance of health necessary for its very existence and survival. Sleep is, therefore, a fundamental and basic requirement without which the existence of life itself would be in peril. To disturb sleep, therefore, would amount to torture which is now accepted as a violation of human right. It would be similar to a third degree method which at times is sought to be justified as a necessary police action to extract the truth out of an accused involved in heinous and cold-blooded crimes. It is also a device adopted during warfare where prisoners of war and those involved in espionage are subjected to treatments depriving them of normal sleep."

8. In the matter of *Farhd K. Wadia vs. Union of India & Ors.*¹², the Hon'ble Supreme Court observed:

"24. This Court has also taken suo motu cognizance as regards noise pollution. It passed various orders from time to time in noise pollution (I), *In re, Noise Pollution (II)*, *In re, Noise Pollution (III)*, *In re and Noise Pollution (IV)*, *In re*. A detailed judgment was rendered by a Division Bench of this Court in the said writ petition, which has since been reported in *Noise Pollution (V)*, *In re*. Several guidelines had been issued therein by this Court in exercise of its jurisdiction under Articles 141 and 142 of the Constitution of India. Therein, the decision of the Calcutta High Court in *Om Birangana Religious Society v. State* has been taken note of. As regards loudspeakers and amplifiers, it was directed: "171. Loudspeakers and amplifiers or other equipment or gadgets which produce offending noise once detected as violating the law should be liable to be seized and confiscated by making provision in the law in that behalf."

9. It is thus clear that noise has auditory as well as non-auditory effects on sleep, hearing, communication, mental and physical health and may even lead to madness. It can disturb work, rest, sleep, communication and damage the hearing and cause psychological and

¹¹ (2012) 5 SCC 1
¹² (2009) 2 SCC 442

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¹¹ (2012) 5 SCC 1
¹² (2009) 2 SCC 442

pathological reactions. Long noise exposure can cause irreversible loss of hearing. The Rules were framed in view of increasing ambient noise levels and noticing its adverse effects on the health. The Rules categorized areas as industrial, commercial, residential (for extent of noise level) and silence zones (to maintain silence near hospitals, educational institutions and courts). The Hon'ble Supreme Court laid down that noise pollution above the specified level affects right to life. Silence was required to be maintained between 10:00 pm to 06:00 am, except for emergencies. It was also directed that provision for seizure and confiscation of equipments used for creating noise should be made.

10. Taking note of the judgments of the Hon'ble Supreme Court in *In Re: Noise Pollution - Implementation of the Laws for restricting use of loud speakers and high volume producing sound systems*¹¹, *Re: Ramdila Maidan Incident, supra*, and *Farhd K. Wadia vs. Union of India & Ors., supra*, and the rules on the subjects, the Tribunal further directed that requisite action be taken including setting up of a website and helpline. The concerned authorities were also required to acquire noise monitoring devices for effective monitoring.
11. The matter was thereafter reviewed on 01.08.2019 in the light of the earlier proceedings and report dated 15.04.2019 furnished by the Special Commissioner of Police (Operation), Delhi and further report dated 30.06.2019 filed by the DCP (Control Room).
12. The Tribunal heard the DCP (East), DCP (Shahadra) and DCP (South) who were present in person and furnished their action taken reports dated 01.07.2019 on the subject of coordination with the RWAs,

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(2005) 5 SCC 733

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Schools and enforcement action. The revised action plan filed by the Commissioner of Police on 28.06.2019 was also considered. The Tribunal recorded its dissatisfaction about the progress in terms of number of monitoring stations, procurement of necessary equipments and compliance of Rule 4(3) of the Rules on the subject of publishing of data with regard to noise pollution and abatement measures. The Tribunal also considered the report filed by the CPCB in O.A. No. 681/2018 with regard to the noise control measures throughout India to the effect that 46 metropolitan cities in 7 States and UTs were identified for carrying out noise mapping. 10 States / UTs had prepared action plans for setting up of National Ambient Noise Monitoring Network. The States of Tripura and West Bengal had made policies for mandatory use of sound systems which was required to be adopted by other States.

13. The Tribunal held that apart from taking other steps, compensation regime was required to be developed.

14. Accordingly following directions were issued:-

"(a) Further steps for meaningful enforcement of Noise Rules be taken by the DPCC and concerned authorities.

(b) Delhi Government may issue appropriate notification on the pattern of Notification issue by the Tripura Government for mandatory use of sound limiters in all sound systems¹⁴. Delhi Government may address the observations of CPCB finding deficiency in its action plan with regard to training for use of measurement devices and developing robust protocol for action against defaulters¹⁵. A compliance report be filed.

(c) Sound measuring devices as sought by the DCP East, Shahdara and South Districts be made

See para 9 above
See para 12 above

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available by the DCP logistics¹⁶. Let the Special CP (Traffic), in charge of the Apex Committee, file an affidavit about the methodology for assessing working of the Committees which are being overseen by the Apex Committee which may include compliance of directions issued to the DCP Logistics.

(d) DPCC may undertake gap analysis and set up sufficient number of monitoring stations and acquire requisite number of equipment¹⁷, compile and publish statistical data relating to noise pollution¹⁸, prescribe interim scale of compensation pending finalization of the same by CPCB¹⁹. Compliance report may be filed by DPCC."

15. We have reviewed the progress on the subject in light of the action taken report filed by Special Commissioner of Police (Traffic) of Delhi filed on 31.10.2019, report dated 11.11.2019 filed by the DPCC and the report dated 14.11.2019 filed by the CPCB.

16. Compliance status may be noted as follows. With regard to direction Nos. (a) and (d), there is hardly any further progress even after three months in the report of Special Commissioner of Police (Traffic) Delhi. Requisite equipments have not been procured. Monitoring stations have not been set up in terms in observation of paragraph 9 of the earlier order. Only report is that tender process is going on. Locations have been identified. Technical specification are in the process of being finalized. Further progress is that a workshop was organized on 16.04.2019 (which is prior even to the earlier order). Another workshop was scheduled for 13.11.2019. Template has been prepared.

17. Likewise, progress by the DPCC can hardly be held to be adequate. We are sorry to record that DPCC has been wholly amiss in

¹⁶ See para 7 above

¹⁷ See para 9 & 12 above

¹⁸ See para 11 above

¹⁹ See para 13 above

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performance of its duties. There is no satisfactory data about the action for violations though violations are rampant and widespread which is failure on the part of all the concerned statutory authorities entrusted with the enforcement of law. Dr. M.P. George representing DPCC has made a statement that the requisite equipment will be procured within 60 days and monitoring stations will be set up within the said time. In view of the long and continued failures in the past, it becomes necessary to direct that if this is not done even by 31.01.2020, Member Secretary, DPCC and Dr. M.P. George will not be entitled to draw salary till the direction of this Tribunal is complied with.

18. Special Commissioner of Police, has stated in para 4 of the status report that the requisite equipments will be required by March, 2020. Accordingly, the Special Commissioner of Police and Deputy Commissioner of Police (Provisioning and Logistics) will not be entitled to draw salary, if there is non compliance even upto 01.04.2020, till compliance.
19. With regard to (b), it is stated that Notification of Delhi Government is ready and will be issued within one week from today. We hope that the statements will be faithfully complied with, failing which appropriate coercive action may have to be taken. Let the Chief Secretary, Govt. of Delhi coordinate this matter.
20. Compliance of directions with regard to training for use of the devices, and robust protocol for action against defaulters may be ensured. As already directed vide order dated 27.09.2018, a dedicated telephone line with recording facility and a dedicated online grievance redressal portal for redressal of noise pollution related

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grievances be developed by Delhi Police and public awareness in this regard created. A minimum grievance redressal timeframe be fixed and monitored by a supervisory authority. Action taken report may be accordingly filed before the next date.

21. We are informed that there are 2000 Eco-clubs in schools/ colleges. Awareness programme may be coordinated in such a way that at least one programme on the subject is held once a month in all such institutions. The present level of awareness activities by Department of Environment, Govt. of NCT Delhi, is inadequate in terms of quality and quantity. It needs to be properly planned and coordinated. Yearly action plan covering different thematic areas of environmental problems needs to be clearly identified, awareness activities planned and monitored. It would be appropriate if target groups are properly identified, logistic and personnel earmarked and action taken is monitored. This may be ensured jointly by the Department of Environment, DPCC and the Special Commissioner of Police in coordination with the Education Department of Delhi and a compliance report furnished by the DPCC before the next by e-mail at judicial-ngb@gov.in.

22. Report of CPCB is that compensation for violation by using equipments should be 10%-25% of cost of such equipment. Compensation suggested as follows:-

S. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
1.	Use of loud speakers/ public address	Rs. 10,000	Seizure



	system (clause 5(1)-5(2), 6(i,ii,iii&iv)		
2.	Violation WRT Generator Sets Norms (standards attached as annexure - IV to VI)		
a)	DG sets more than 1000 KVA	Rs. 1,00,000/-	Sealing of DG sets
b)	DG sets 62.5 to 1000 KVA	Rs. 25,000/-	
c)	DG sets upto 62.5 KVA	Rs. 10,000/-	
3.	Violation of use of sound emitting construction equipment	Rs. 50,000/-	Seizure / Sealing of equipment"
4.	Bursting of Firecrackers beyond the prescribed time limit prescribed (Hon'ble Supreme Court and Clause 5A (2) and 6 (iv)	Rs. 1000/-	

23. We are of the view that compensation for bursting of crackers at serial No. 4 needs to be suitably revised and needs to be different for different classes of defaulters and frequencies of default. Further, the CPCB has suggested that compensation should be 2-3 times for second and third violations accompanied by withdrawal of permission for installation/operation for their equipment.

24. The CPCB may also lay down stringent compensation for tampering with the sound limiters to ensure that the same is not restored to. Let compliance reports be filed by CPCB, Department of Environment, DPCC and Special Commissioner of Police, Delhi by 31.03.2020 by email at judicial-ngt@gov.in.

List again on 14.04.2020.

Adarsh Kumar Goel, CP

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S.P Wangdi, JM

K. Ramakrishnan, JM

Dr. Nagin Nanda, EM

Saibal Dasgupta, EM

November 20, 2019
Original Application No. 519/2016
and other connected matters

Praveen
For EMs

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Sl.No.	Category	Standards dB(A)
1	2	3
46.	NOISE LIMITS FOR AUTOMOBILES (FREE FIELD) AT ONE METER IN dB(A) AT THE MANUFACTURING STAGE TO BE ACHIEVED BY THE YEAR 1992.	
	(a) Motorcycle, Scooters & Three wheelers	80
	(b) Passenger Cars	82
	(c) Passenger or Commercial Vehicles upto 4 MT	85
	(d) Passenger or Commercial Vehicles above 4 MT and upto 12 MT	89
	(e) Passenger or Commercial Vehicles exceeding 12 MT	91
47.	DOMESTIC APPLIANCES AND CONSTRUCTION EQUIPMENTS AT THE MANUFACTURING STAGE TO BE ACHIEVED BY THE YEAR, 1993	
	(a) Window Air Conditioner of 1 ton to 1.5 tons	68
	(b) Air Coolers	60
	(c) Refrigerators	46
	¹ [(d) ***	-1
	(e) Compactors (rollers) Front loaders, Concrete mixers, Cranes (movable), Vibrators and Saws.	75

The words and figures 'Diesel generators for domestic purposes ... 85-90' omitted by Rule 2(b) of the Environment (Protection) Second Amendments Rules, 2002 published vide Notification No.G.S.R.371(E), dated 17.5.2005

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Noise Standards for Fire-crackers

(The Noise standards for fire-crackers were notified by the Environment (Protection) (Second Amendment) Rules, 1999 vide G.S.R.682(E), dated the 5th October, 1999 and inserted as serial no. 89 of Schedule I of the Environment (Protection) Rules, 1986. Subsequently these Rules were amended by the Environment (Protection) Second Amendment Rules, 2006 vide G.S.R. 640(E), dated the 16th October, 2006, under the Environment (Protection) Act, 1986)

- A.
 - (i) The manufacture, sale or use of fire-crackers generating noise level exceeding 125 dB(A) or 145 dB(C)_{pk} at 4 meters distance from the point of bursting shall be prohibited.
 - (ii) For individual fire-cracker constituting the series (joined fire-crackers), the above mentioned limit be reduced by $5 \log_{10}(N)$ dB, where N = number of crackers joined together.
- B. The broad requirements for measurement of noise from fire-crackers shall be-
 - (i) The measurements shall be made on a hard concrete surface of minimum 5 meter diameter or equivalent.
 - (ii) The measurements shall be made in free field conditions i.e., there shall not be any reflecting surface upto 15 meter distance from the point of bursting.
 - (iii) The measurement shall be made with an approved sound level meter.
- C. The Department of Explosives shall ensure implementation of these standards.
- D. The fire-crackers for the purpose of export shall be exempted from the sub-paragraphs A, B and C above, subject to the compliance of the following conditions, namely:-
 - (i) the manufacturer shall have an export order;
 - (ii) the fire-crackers shall conform to the level prescribed in the country to which it is exported;
 - (iii) they shall have a different packing colour code, and

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- (iv) there shall be a declaration on the box "not for sale in India" or "only for export in other countries."

Note: dB(AI): A-weighted impulse Sound Pressure Level in decibel
dB(C)_{pk}: C-weighted Peak Sound Pressure Level in decibel."



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91. NOISE LIMIT FOR GENERATOR SETS RUN WITH PETROL OR KEROSENE

1. Noise limit

Noise limit for new generator sets run with petrol or kerosene shall be as given below:

	Noise Limit from	
	¹ [September 1, 2002]	² [September 1, 2003]
Sound Power level L _{wa}	90 dBA	86 dBA

2. Applicability

These rules shall apply to all new generator sets using petrol or kerosene as fuel, manufactured in or imported into India:

Provided that these rules shall not apply to:

- any genset manufactured or imported for the purpose of exports outside India, or
- the genset is intended for the purpose of sample only and not for sale in India.

3. Requirement of certification

Every manufacturer or importer (hereinafter referred to as "supplier") of genset (hereinafter referred to as "product") to which these rules apply must have a valid certificate of type approval for all the product models being manufactured or imported after the specified dates.

4. Verification of conformity of production (COP)

Every supplier shall subject its products to the verification for conformity of production, by certification body specified in clause 8, every year.

5. Sale of generator sets not complying with these rules

The sale of product model, not having valid type approval certificate, or not complying with the noise limits, as determined by the verification for conformity of production, shall be prohibited, in India.

¹ Substituted by Rule 2 of the Environment (Protection) Amendment Rules, 2001 published vide Notification No.G.S.R.628(E), dated 30.8.2001 from 'September 1, 2001 to September 1, 2002'.

² Substituted by Rule 2 of the Environment (Protection) Amendment Rules, 2001 published vide Notification No.G.S.R.628(E), dated 30.8.2001 from 'September 1, 2002 to September 1, 2003'.

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6. Requirement of conformance labelling

- 6(1) The supplier of the 'product' must affix a conformance label on the product meeting the following requirements:
- a) the label shall be durable and legible
 - b) the label shall be affixed on a part necessary for normal operation of the 'product' and not normally requiring replacement during the 'product' life.
- 6(2) The conformance label must contain the following information:
- a) name & address of the supplier (if the address is described in the owners manual, it may not be included in the label)
 - b) statement that "this product conforms to the Environment (Protection) Rules, 1986
 - c) type approval certificate number and time phase (i.e. Sept 2001 or Sept 2002)

7. Nodal agency

- (1) The Central Pollution Control Board shall be the nodal agency for implementation of these rules.
- (2) In case of any dispute or difficulty in implementation of these rules the matter shall be referred to the nodal agency.
- (3) The nodal agency shall constitute a Standing Committee to advise it on all matters; including the disputed matters, related to the implementation of these rules.

8. Certification body

The following agencies are authorised for type approval and for verification of conformity of production.

- (1) Automotive Research Association of India, Pune;
- (2) National Physical Laboratory, New Delhi;
- (3) Naval Science & Technology Laboratory, Visakhapatnam;
- (4) Fluid Control Research Institute, Palghat; and
- (5) National Aerospace Laboratory, Bangalore.

9. Compliance and testing procedure

The compliance and testing procedure shall be prepared and published by Central Pollution Control Board, with the help of the certification agencies.

NOISE LIMIT FOR GENERATOR SETS RUN WITH DIESEL

(Noise Limit for Generator Sets run with Diesel were notified by Environment (Protection) second Amendment Rules vide GSR 371(E), dated 17th May 2002 at serial no.94 and its amendments vide GSR No 520(E) dated 1st July 2003; GSR 448(E), dated 12th July 2004; GSR 315(E) dated 16th May 2005; GSR 464(E) dated 7th August 2006; GSR 566(E) dated 29th August 2007 and GSR 752(E) dated 24th October 2008; G.S.R. 215 (E), dated 15th March, 2011 under the Environment (Protection) Act, 1986)

Noise Limit for Generator Sets run with Diesel

1. Noise limit for diesel generator sets (upto 1000 KVA) manufactured on or after the 1st January, 2005.

The maximum permissible sound pressure level for new diesel generator (DG) sets with rated capacity upto 1000 KVA, manufactured on or after the 1st January, 2005 shall be 75 dB(A) at 1 metre from the enclosure surface.

The diesel generator sets should be provided with integral acoustic enclosure at the manufacturing stage itself.

The implementation of noise limit for these diesel generator sets shall be regulated as given in paragraph 3 below.

2. Noise limit for DG sets not covered by paragraph 1.

Noise limits for diesel generator sets not covered by paragraph 1, shall be as follows:-

- 2.1 Noise from DG set shall be controlled by providing an acoustic enclosure or by treating the room acoustically, at the users end.
- 2.2 The acoustic enclosure or acoustic treatment of the room shall be designed for minimum 25 dB (A) insertion loss or for meeting the ambient noise standards, whichever is on the higher side (if the actual ambient noise is on the higher side, it may not be possible to check the performance of the acoustic enclosure/acoustic treatment. Under such circumstances the performance may be checked for noise reduction upto actual ambient noise level, preferably, in the night time). The measurement for Insertion Loss may be done at different points at 0.5 m from the acoustic enclosure/ room, then averaged.
- 2.3 The DG set shall be provided with proper exhaust muffler with insertion loss of minimum 25 dB (A).

Signature
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2.4 These limits shall be regulated by the State Pollution Control Boards and the State Pollution Control Committees.

2.5 Guidelines for the manufacturers/ users of Diesel Generator sets shall be as under:-

01. The manufacturer shall offer to the user a standard acoustic enclosure of 25 dB (A) insertion loss and also a suitable exhaust muffler with insertion loss of 25 dB(A).
02. The user shall make efforts to bring down the noise levels due to the DG set, outside his premises, within the ambient noise requirements by proper citing and control measures.
03. Installation of DG set must be strictly in compliance with the recommendations of the DG set manufacturer.
04. A proper routine and preventive maintenance procedure for the DG set should be set and followed in consultation with the DG set manufacturer which would help prevent noise levels of the DG set from deteriorating with use.

3.0 Limits of Noise for DG Sets (upto 1000 KVA) Manufactured on or after the 1st January, 2005

3.1 Applicability

01. These rules apply to DG sets upto 1000 KVA rated output, manufactured or imported in India, on or after 1st January, 2005.
02. These rules shall not apply to –
 - a) DG sets manufactured or imported for the purpose of exports outside India; and
 - b) DG sets intended for the purpose of sample and not for sale in India.

3.2 Requirement of Certification

Every manufacturer or assembler or importer (hereinafter referred to as the "manufacturer") of DG set (hereinafter referred to as "product") to which these regulations apply must have valid certificates of Type Approval and also valid certificates of Conformity of Production for each year, for all the product models being manufactured or assembled or imported from 1st January, 2005 with the noise limit specified in paragraph 1.

3.3 Sale, import or use of DG sets not complying with the rules prohibited

No person shall sell, import or use of a product model, which is not having a valid Type Approval Certificate and Conformity of Production certificate.

3.4 Requirement of Conformance Labelling

- i) The manufacturer of the 'product' must affix a conformance label on the product meeting the following requirements:
 - (a) The label shall be durable and legible.
 - (b) The label shall be affixed on a part necessary for normal operation of the 'product' and not normally requiring replacement during the 'product' life.
- ii) The conformance label must contain the following information:
 - (a) Name & address of the manufacturer (if the address is described in the owner's manual, it may not be included in the label).
 - (b) Statement "this product conforms to the Environment (Protection) Rules, 1986".
 - (c) Noise limit viz. 75 dB(A) at 1 m
 - (d) Type Approval certificate number
 - (e) Date of manufacture of the product

3.5 Nodal Agency

- i) The Central Pollution Control Board shall be the nodal agency for implementation of these regulations.
- ii) In case of any dispute or difficulty in implementation of these regulations, the matter shall be referred to the nodal agency.
- iii) The nodal agency shall constitute a Committee to advise it on all matters; including the disputed matters, related to the implementation of these regulations.

3.6 Authorised agencies for certification

The following agencies are authorized to carry out such tests as they deem necessary for giving certificates for Type Approval and Conformity of Production testings of DG sets and to give such certificates:

- i) Automotive Research Association of India, Pune;
- ii) Naval Science & Technology Laboratory, Visakhapatnam;
- iii) Fluid Control Research Institute, Palghat;

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- iv) National Aerospace Laboratory, Bangalore;
- v) International Centre for Automotive Technology, Manesar, Haryana; and
- vi) National Test House (Northern Region), Ghaziabad, Uttar Pradesh.

3.7 Compliance and Testing Procedure

The compliance and testing procedure shall be prepared and published by the Central Pollution Control Board, with the help of the certification agencies.

4.0 Exemption from the provisions of paragraph 1 and 3, for the products (diesel generator sets upto 30 KVA) purchased by the Ministry of Defence, Government of India.

The products manufactured in or imported into India till 30th April, 2007 for the purpose of supplying to the Ministry of Defence, shall be exempted from the regulations given in paragraphs 1 to 3 above, subject to the following conditions, namely:-

- i) The manufacturer shall manufacture or import the products only after getting purchase order from the Ministry of Defence and shall maintain the record of receipts, production / import, dispatch, etc., for inspection by the Central Pollution Control Board.
- ii) The special dispensation for noise norms shall be only for the mobile Defence vehicles which, with the present design / configuration, cannot carry the gensets with acoustic enclosures.
- iii) Director, Ministry of Defence shall ensure and maintain the serial number of all gensets for the Army and he shall also direct the manufacturers of these gensets to emboss on the engine and the main body of the gensets, the words "For the use of Army only".
- iv) The genset serial number shall be specially assigned by the Ministry of Defence with the request for proposal and contract purchase order and this information shall be forwarded to the Central Pollution Control Board for inspection as and when required.
- v) Registers shall be maintained at the manufacturers premises and in the Ministry of Defence to ensure that the number of gensets manufactured under special dispensation are not misused.
- vi) The gensets procured under this dispensation shall be operated in the remote areas and not in the cities.

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- vii) This shall be a one-time exemption during which the Army shall remodel its vehicles to contain the new gensets and also obtain the necessary Type Approval of the gensets.

5.0 Exemption from the provisions of paragraph 1 and 3 for sixteen Diesel Generator sets of 45 KVA purchased by the Ministry of Defence, Government of India.

The 45 KVA DG sets manufactured in India for the purpose of their use in Mobile Decontamination System for use by the Ministry of Defence shall be exempted from the regulations given in paragraph 1 to 3 above subject to the following conditions, namely:-

- i) The special dispensation for the noise norms shall be only for the DG sets to be used in Mobile Decontamination System (MDS) by Army which, with the present design/configuration cannot carry the gensets with acoustic enclosures.
- ii) The Director, Ministry of Defence, shall ensure and maintain the serial numbers for sixteen gensets and he shall also direct the manufacturers of these generator sets to emboss on the engine and main body of the gensets, the words "For the use of Army only in Mobile Decontamination System (MDS)"
- iii) A register shall be maintained at the manufacturers premises and in the Ministry of Defence to ensure that only sixteen numbers of 45 KVA gensets are manufactured under special dispensation and are not misused elsewhere.

6.0 Transportation of Diesel Generator Sets (above 250 KVA)

- i) Diesel Generator set shall be transported after fulfilling the requirement of certification specified in paragraph 3.2 as a complete unit with acoustic enclosure, or dismantled, with relevant genset number specified on acoustic enclosure and silencer for reassembling at the site of its operation.
- ii) Compliance with the noise norms shall be monitored after reassembling the DG set at the location of the installation by the concerned State Pollution Control Board or, as the case may be, the Union Territory Pollution Control Committee.

Handwritten signature: J. S. S. S.
PUBLIC INFORMATION OFFICER
KERALA STATE POLLUTION CONTROL BOARD
CATTON P.O., THIRUVANANTHAPURAM-695 021

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(ख) केन्द्रीय प्रदूषण नियंत्रण बोर्ड, सभी संबद्ध व्यक्तियों के लिए छह मास का समय अनुज्ञापन करने हुए, अनुपालन और जांच प्रक्रिया को ब्याप्यस्थिति, चिकित्त या पुनरीक्षण कर सकेगा।

(ग) ऊपर पैरा क और ख में निर्दिष्ट संस्थान, यथास्थान उद्योग और/या ध्वनि के संबंध में जांच और प्रमाणन संबंधी व्योरे वार्षिक रूप से केन्द्रीय प्रदूषण बोर्ड को प्रस्तुत करेगा और केन्द्रीय प्रदूषण नियंत्रण बोर्ड जांच के पर्यावलोकन के लिए अपने पदधारियों को नैमात करने के लिए स्वतंत्र होगा।

11. डीजल और एनजी या एलपीजी पर चलने वाले सभी जनसेट इंजन सुरक्षा अपेक्षाओं का अनुपालन करेंगे।

12. डीजल और एनजी या एलपीजी के लिए लागू वाणिज्यिक इंजन के विनिर्देश, समय-नामय पर भारत सरकार की नीति के अनुसार ऐसे क्षेत्र में चलने वाले डीजल और एनजी या एलपीजी यानों को लागू होंगे, जहां उत्पाद का प्रचालन होगा।

13. उद्योग संकेपी कार्यपालन के लिए उत्तरदायी इंजन के चटकों या भागों के सभी व्योरे को स्पष्ट रूप में अंग्रेजी भाषा में अंकित किया जाएगा।

[क्र.सं. वसू. 15017/5/2012-नीपीडब्ल्यू]

डा. राधिर दसन, सलाहकार

टिप्पण - मूल नियम भारत के राजपत्र, असाधारण, भाग 2, खंड 3, उपखंड (i) में अधिसूचना सं. का.आ. 844(अ), तारीख 19 नवंबर, 1986 द्वारा प्रकाशित किए गए थे और तत्पश्चात् इनमें निम्नलिखित अधिसूचनाओं द्वारा संशोधन किए गए थे, अर्थात्:-

का.आ. 433 (अ), तारीख 18 अप्रैल, 1987; सा.का.नि. 176(अ), तारीख 2 अप्रैल, 1996; सा.का.नि. 97(अ), तारीख 18 फरवरी, 2009; सा.का.नि. 149 (अ), तारीख 4 मार्च, 2009; सा.का.नि. 543 (अ), तारीख 22 जुलाई, 2009; सा.का.नि. 739 (अ), तारीख 9 सितंबर, 2010; सा.का.नि. 809 (अ), तारीख 4 अक्तूबर, 2010; सा.का.नि. 215 (अ), तारीख 15 मार्च, 2011; सा.का.नि. 221(अ), तारीख 18 मार्च, 2011; सा.का.नि. 354 (अ), तारीख 2 मई, 2011; सा.का.नि. 424 (अ), तारीख 1 जून, 2011; सा.का.नि. 446 (अ), तारीख 13 जून, 2011; सा.का.नि. 152 (अ), तारीख 16 मार्च, 2012; सा.का.नि. 266 (अ), तारीख 30 मार्च, 2012; और सा.का.नि. 277 (अ), तारीख 31 मार्च, 2012; और सा.का.नि. 820 (अ), तारीख 9 नवंबर, 2012; सा.का.नि. 176 (अ), तारीख 18 मार्च, 2013; सा.का.नि. 535 (अ), तारीख 7 अगस्त, 2013; सा.का.नि. 771 (अ), तारीख 11 दिसंबर, 2013; सा.का.नि. 2(अ), तारीख 2 जनवरी, 2014; सा.का.नि. 229 (अ), तारीख 28 मार्च, 2014; सा.का.नि. 232 (अ), तारीख 31 मार्च, 2014; सा.का.नि. 325 (अ), तारीख 7 मई, 2014; सा.का.नि. 612 (अ), तारीख 25 अगस्त, 2014; सा.का.नि. 789 (अ), तारीख 11 नवंबर, 2014; का. आ. 3305 (अ), तारीख 7 दिसंबर, 2015; का.आ. 4(अ), तारीख 1 जनवरी, 2016 और इनमें अंतिम संशोधन अधिसूचना सं. सा.का.नि. 35 (अ), तारीख 14 जनवरी, 2016 द्वारा किया गया था।

MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE

NOTIFICATION

New Delhi, the 7th March, 2016

G.S.R.281(E).— In exercise of the powers conferred by sections 6 and 25 of the Environment (Protection) Act, 1986 (29 of 1986), the Central Government hereby makes the following rules further to amend the Environment (Protection) Rules, 1986, namely:-

1. Short title and commencement.- (1) These rules may be called the Environment (Protection) Third Amendment Rules, 2016

(2) They shall come into force on the date of their publication in the Official Gazette.

2. In the Environment (Protection) Rules, 1986, in Schedule - I, after serial number 95 and the entries relating thereto, the following serial numbers and entries shall be inserted, namely:-

*95A. Genset run on dedicated Natural Gas (NG) or Liquid Petroleum Gas (LPG) :-

A. Emission Limits.- The emission limits for dedicated NG or LPG driven engine for genset application or genset (upto 800 kW) shall be effective from 1st July, 2016 as specified in the Table below subject to the general conditions contained therein, namely:-

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TABLE-

Power Category	Emission Limits (g/kW-hr)	
	NO _x + NMHC Or NO _x + RHC	CO
Upto 19 kW	≤ 7.5	≤ 3.5
More than 19 kW upto 75 kW	≤ 4.7	≤ 3.5
More than 75 kW upto 800 kW	≤ 4.0	≤ 3.5

Notes:- The abbreviations used in the Table shall mean as under: I. NO_x - Oxides of Nitrogen; CO - Carbon Monoxide; NMHC - Non-Methane Hydrocarbon; and RHC - Reactive Hydrocarbon.

- Dedicated NG or LPG genset engine shall mean a mono-fuel engine starting and operating with only one fuel, i.e., NG or LPG.
- NO_x + NMHC or NO_x + RHC shall be measured in case of dedicated NG or LPG genset engine, NMHC shall be equal to 0.3xTotal Hydrocarbon (THC) in case of NG, and RHC is equal to 0.5xTHC in case of LPG.
- These norms shall be applicable to Original Equipment Manufacturer (OEM) built dedicated NG or LPG genset engines.
- The above mentioned emission limits shall be applicable for Type Approval and Conformity of Production (COP) carried out by authorised agencies.
- Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for emission standards for engine products and to issue such certificates on compliance of the prescribed norms, namely:-
 - The Automotive Research Association of India, Pune (Maharashtra);
 - The International Centre for Automotive Technology, Manesar (Haryana);
 - The Indian Oil Corporation, Research and Development Centre, Faridabad (Haryana);
 - The Indian Institute of Petroleum, Dehradun (Uttarakhand); and
 - The Vehicle Research Development Establishment, Ahmednagar (Maharashtra).
- Stack height (in metres), for genset shall be governed as per Central Pollution Control Board (CPCB) guidelines.

B. Noise Limits:- 1. The maximum permissible sound pressure level for genset, with rated capacity upto 800 kW shall be 75 dB(A) at 1 metre from the enclosure surface. Gensets should be provided with integral acoustic enclosure at the manufacturing stage itself. The noise norms shall be effective from the 1st January, 2017.

2. Noise limit for gensets not covered under paragraph (1) shall be as follows:-

- Noise from gensets shall be controlled by providing an acoustic enclosure or by treating the room acoustically, at the users end.
- The acoustic enclosure shall be designed for minimum 25 dB(A) insertion loss or for complying with the ambient noise standards, whichever is on the higher side (if the actual ambient noise is on the higher side, it may not be possible to check the performance of the acoustic enclosure or acoustic treatment. Under such circumstances the performance may be checked for noise reduction upto actual ambient noise level, preferably, in the night time between 10.00 pm-6.00 am). The measurement for insertion loss may be done at different points at 0.5m from the acoustic enclosure or room, and then averaged.
- The genset shall be provided with proper exhaust muffler with insertion loss of minimum 25 dB(A).
- These limits shall be regulated by the State Pollution Control Boards and the State Pollution Control Committees.
- The manufacturer shall offer to the user a standard acoustic enclosure of 25 dB(A) insertion loss and also a suitable exhaust muffler with insertion loss of 25 dB(A).
- The user shall make efforts to bring down the noise levels due to the genset, outside his premises, within the ambient noise requirements by proper siting and control measures.
- Installation of a genset shall be strictly in compliance with the recommendation of the genset manufacturer.
- A proper routine and preventive maintenance procedure for the genset shall be set and followed in consultation with the genset manufacturer.

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3. Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for noise norms for dedicated NG or LPG gensets and issue such certificates on compliance of the prescribed norms, namely:-

- (a) The Automotive Research Association of India, Pune (Maharashtra);
- (b) The International Centre for Automotive Technology, Manesar (Haryana);
- (c) The Fluid Control Research Institute, Palghat (Kerala);
- (d) The National Test House, Ghaziabad (Uttar Pradesh);
- (e) The National Aerospace Laboratory, Bengaluru (Karnataka); and
- (f) The Naval Science and Technology Laboratory, Visakhapatnam (Andhra Pradesh).

C. General Conditions.—

1. Every manufacturer, importer or assembler (hereinafter referred to as the 'manufacturer') of the dedicated NG or LPG engine (hereinafter referred to as 'engine') for genset application manufactured or imported into India or dedicated NG or LPG genset (hereinafter referred to as 'product'), assembled or imported into India shall obtain Type Approval and comply with the COP of their products for the emission limits which shall be valid for the next COP year or, the date of implementation of the norms specified above, whichever is earlier. Thereafter, the manufacturer shall obtain COP approval every COP year. NG or LPG kit shall also have independent Type Approval and shall independently comply with COP requirement, as and when notified.
2. These conditions shall apply to all new engines for genset application and products manufactured, assembled or imported into India, as the case may be:

Provided that these rules, shall not apply to, -

- (a) any engine or, product, assembled or manufactured or imported, as the case may be, for the purpose of export outside India; or
- (b) any engine or product intended for the purpose of sample limited to four in number and to be exported back within three months, and not for sale in India.
3. Every manufacturer of engine or product, as the case may be, shall have valid certificates of Type Approval and COP for each COP year, for all engine models being manufactured or, for all engine or product models being imported, after the effective date of the emission limits, as specified above and CPCB shall develop system and procedure to monitor the norms and COP year.
4. Every manufacturer shall submit its engine or products, as the case may be, for the verification for conformity of production for emission and noise, by any of the institutions, as applicable, every COP year.
Note :- The term COP year, duty cycle and any other requirement for compliance of Type Approval and COP shall be prescribed in the system and procedure to be developed by the Central Pollution Control Board.
5. No person shall manufacture, sell, import or use an engine for genset application or any product which is not having a valid Type Approval certificate and certificate of COP referred to in sub - paragraph (3) above, as applicable.
6. All the engines, individually or as part of the product shall be clearly engraved as NG genset Engine or LPG genset engine on the cylinder block, as the case may be.
7. The engine or the product shall be affixed with a conformance label meeting the following requirements, namely:-
 - (a) the label shall be durable and legible;
 - (b) the label shall be affixed on a part necessary for normal operation of the engine or the product and not normally requiring replacement during the life of the engine or the product.
8. The conformance label shall contain the following information, namely:-
 - (a) Name and address of the manufacturer of engine or product, as the case may be;
 - (b) Statement that the engine or product conforms to the Environment (Protection) Rules, 1986;
 - (c) Type Approval Certificate number;
 - (d) Date of manufacture of engine and the product or in case of import, the date of import of the engine and the product; and
 - (e) Rated speed and corresponding gross power in kW.
9. (a) The Central Pollution Control Board shall be the nodal agency for implementation of these rules.
- (b) In case of any dispute or difficulty in implementation of these rules, the matter shall be referred to the nodal agency.

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- (c) The nodal agency shall constitute a Standing Committee for emission related issues and a National Committee for noise related issues, respectively, to advise it on all matters related to the implementation of these rules including disputes, if any.
10. (a) All genset engines operating on dedicated NG or LPG shall be tested for Type Approval and COP of emission and noise limits compliance as per system and procedure published from time to time by the Central Pollution Control Board.
- (b) The Central Pollution Control Board may develop or as the case may be, revise the compliance and testing procedure allowing a time of six months for all concern.
- (c) The institutes referred to in paragraph A and B above shall submit the testing and certification details in respect of emission and, or, noise, as applicable, to the Central Pollution Control Board, annually and the Central Pollution Control Board shall be free to depute its officials to oversee the testing.
11. All genset engine's operating on dedicated NG or LPG shall comply safety requirements.
12. The specification of commercial fuel applicable for NG or LPG shall be applicable for vehicles run on NG or LPG in the area where product shall be operated, from time to time, as per policy of Government of India.
13. All the details of engine components or part responsible for the emission performance shall be clearly marked in English language.

95B. Genset run on Petrol and Natural Gas (NG) or Petrol and Liquid Petroleum Gas (LPG):-

A. Emission Limits.—The emission limits for Petrol and NG or Petrol and LPG genset (upto 19 kW) powered by SI engine (upto 400 cc displacement) (hereinafter referred to as Genset) shall be effective from the 1st August, 2016 as specified in the following Table:-

TABLE

Class	Engine Displacement (cc)	CO (g/kWh)	NO _x + THC/NO _x + NMHC / NO _x + RHC (g/kWh)
1	Upto 99	≤ 250	≤ 12
2	>99 and upto 225	≤ 250	≤ 10
3	≥ 225 ≤ 400	≤ 250	≤ 8

Notes: The abbreviations used in above table shall mean as under: 1. SI – Spark Ignition, NG – Natural Gas, LPG – Liquid Petroleum Gas, NO_x – Oxides of Nitrogen, THC – Total Hydrocarbon, CO – Carbon Monoxide, NMHC – Non- Methane Hydrocarbon and RHC – Reactive Hydrocarbon.

2. Dual fuel engine operation shall mean a two – fuel system having petrol as a primary combustion fuel and NG or LPG as supplementary fuel, both in a certain proportion, throughout the engine operating zone. Such dual fuel Genset engine may operate on petrol stand-alone mode in absence of gaseous fuel i.e. NG or LPG.
3. NMHC shall be equal to 0.3×THC in case of Natural Gas and RHC shall be equal to 0.5×THC in case of LPG.
4. These norms shall be applicable to Original Equipment Manufacturer (OEM) built petrol and NG or petrol and LPG genset (upto 19 kW) powered by SI engine (upto 400 cc displacement). Conversion or Retrofitment of the existing petrol or Kerosene generator sets to run on petrol and NG or petrol and LPG shall not be permitted.
5. The above emission limits shall be applicable for Type Approval and Conformity of Production (COP) undertaken by authorized agencies and shall be complied with petrol alone or petrol and NG or LPG fuel mode separately.
6. Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for emission standards for engine products and to issue such certificates on compliance of the prescribed norms, namely:-
- (a) The Automotive Research Association of India, Pune (Maharashtra);
- (b) The International Centre for Automotive Technology, Manesar (Haryana);
- (c) The Indian Oil Corporation, Research and Development Centre, Faridabad (Haryana);
- (d) The Indian Institute of Petroleum, Dehradun (Uttarakhand); and
- (e) The Vehicle Research Development Establishment, Ahmednagar (Maharashtra).

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7. $\text{NO}_x + \text{THC}$ shall be measured as emissions from petrol alone in bi-fuel fuel mode of operation. $\text{NO}_x + \text{NMHC}$ or $\text{NO}_x + \text{RHC}$ shall be measured in case of petrol and NG or petrol and LPG fuel mode of operation, respectively.
- B. Noise Limits.—1. The noise limit for gensets (upto 19 kW) powered by an SI engine (upto 400 cc displacement) run on petrol and NG or petrol and LPG shall be effective from the 1st September, 2016 as specified in the following table :

TABLE

Noise Parameter	Noise Limits
Sound Power Level _{wa}	86 dB(A)

2. Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for noise norms for dedicated petrol or petrol and NG or LPG gensets and issue such certificates on compliance of the prescribed norms, namely :-
- The Automotive Research Association of India, Pune (Maharashtra);
 - The International Centre for Automotive Technology, Manesar (Haryana);
 - The Fluid Control Research Institute, Palghat (Kerala);
 - The National Test House, Ghaziabad (Uttar Pradesh);
 - The National Aerospace Laboratory, Bangalore (Karnataka); and
 - The Naval Science and Technology Laboratory, Visakhapatnam (Andhra Pradesh).

C. General Conditions:

- Every manufacturer, importer or assembler (hereinafter referred to as the 'manufacturer') of the petrol and NG or LPG engine (hereinafter referred to as 'engine') for genset application manufactured or imported into India or petrol and NG or LPG genset (hereinafter referred to as 'product'), assembled or imported into India shall obtain Type Approval and comply with the COP of their products for the emission limits which shall be valid for the next COP year or, the date of implementation of the norms specified above, whichever is earlier. Thereafter, the manufacturer shall obtain COP approval every COP year. Petrol and NG or LPG kit shall also have independent Type Approval and shall independently comply with COP requirement, as and when notified.
- These conditions shall apply to all new engines for genset application and products manufactured, assembled or imported into India, as the case may be:

Provided that these rules, shall not apply to, -

- any engine or, product, assembled or manufactured or imported, as the case may be, for the purpose of export outside India; or
 - any engine or product intended for the purpose of sample limited to four in number and to be exported back within three months, and not for sale in India.
- Every manufacturer of engine or product, as the case may be, shall have valid certificates of Type Approval and COP for each COP year, for all engine models being manufactured or, for all engine or product models being imported, after the effective date of the emission limits, as specified above and CPCB shall develop system and procedure to monitor the norms and COP year.
 - Every manufacturer shall submit its engines or products to the verification for conformity of production for emission and noise, by any of the institutions, as applicable, every COP year.

Note.—The term 'COP year', duty cycle and any other requirement for compliance of Type Approval and COP to be prescribed in the System and Procedure developed by the Central pollution Control Board.

- No person shall manufacture, sell, import or use an engine for genset application or any product which is not having a valid Type Approval certificate and certificate of COP referred to in sub - paragraph (3) above, as applicable.
- All the engines, individually or as part of the product shall be clearly engraved as petrol and NG genset Engine or petrol and LPG genset engine on the cylinder block, as the case may be.
- The engine or the product shall be affixed with a conformance label meeting the following requirements, namely:—

- the label shall be durable and legible;



2. Dual fuel engine operation shall mean a two – fuel system having diesel as a primary combustion fuel and NG or LPG as supplementary fuel, both in a certain proportion, throughout the engine operating zone. Such dual fuel genset engine may operate on diesel stand-alone mode in absence of gaseous fuel i.e. NG or LPG.
3. $\text{NO}_x + \text{THC}$ shall be measured as emission while diesel alone is used as fuel. $\text{NO}_x + \text{NMHC}$ or $\text{NO}_x + \text{RHC}$ shall be measured in case of diesel and NG or diesel and LPG dual fuel operation respectively. NMHC shall be equal to $0.3 \times \text{THC}$ in case of NG and RHC as $0.5 \times \text{THC}$ in case of LPG.
4. These norms shall be applicable to Original Equipment Manufacturer (OEM) built diesel and NG or LPG Genset engines. Conversion or retro fitment of the existing diesel engines to run on diesel and NG or diesel and LPG shall not be permitted.
5. The above mentioned emission limits shall be applicable for Type Approval and Conformity of Production (COP) carried out by authorised agencies. For Type Approval and COP for diesel and NG or diesel and LPG dual fuel operation engines, the emission and smoke limits prescribed in above Table shall be met in diesel alone or diesel and NG or diesel and LPG dual fuel mode separately.
6. Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for emission standards for engine products and to issue such certificates on compliance of the prescribed norms, namely:-
 - (a) The Automotive Research Association of India, Pune (Maharashtra);
 - (b) The International Centre for Automotive Technology, Manesar (Haryana);
 - (c) The Indian Oil Corporation, Research and Development Centre, Faridabad (Haryana);
 - (d) The Indian Institute of Petroleum, Dehradun (Uttarakhand); and
 - (e) The Vehicle Research Development Establishment, Ahmednagar (Maharashtra).
7. Stack height (in metres) for genset shall be governed as per Central Pollution Control Board (CPCB) guidelines.
8. $\text{NO}_x + \text{THC}$ shall be measured as emissions from diesel alone in bi-fuel fuel mode of operation, $\text{NO}_x + \text{NMHC}$ or $\text{NO}_x + \text{RHC}$ shall be measured in case of diesel and NG or diesel and LPG fuel mode of operation, respectively.
9. The emission standards for smoke and particulate matter shall be applicable, when diesel is used as fuel. Smoke limit prescribed in above Table shall not exceed throughout the operating load points of the test cycle.
- B. Noise Limits.**—1. The maximum permissible sound pressure level for genset, with rated capacity upto 800 kW shall be 75 dB(A) at 1 metre from the enclosure surface. Gensets shall be provided with integral acoustic enclosure at the manufacturing stage itself. The noise norms shall be effective from the 1st January, 2017.
2. Noise limit for gensets not covered under paragraph (1) shall be as follows:-
 - (a) Noise from gensets shall be controlled by providing an acoustic enclosure or by treating the room acoustically, at the users end.
 - (b) The acoustic enclosure shall be designed for minimum 25 dB(A) insertion loss or for complying with the ambient noise standards, whichever is on the higher side (if the actual ambient noise is on the higher side, it may not be possible to check the performance of the acoustic enclosure or acoustic treatment. Under such circumstances the performance may be checked for noise reduction upto actual ambient noise level, preferably, in the night time between 10.00 PM-6.00 AM). The measurement for insertion loss may be done at different points at 0.5m from the acoustic enclosure or room, and then averaged.
 - (c) The genset shall be provided with proper exhaust muffler with insertion loss of minimum 25 dB(A).
 - (d) These limits shall be regulated by the State Pollution Control Boards and Pollution Control Committees.
 - (e) The manufacturer shall offer to the user a standard acoustic enclosure of 25 dB(A) insertion loss and also a suitable exhaust muffler with insertion loss of 25 dB(A).
 - (f) The user shall make efforts to bring down the noise levels due to the genset, outside his premises, within the ambient noise requirements by proper siting and control measures.
 - (g) Installation of a genset shall be strictly made in compliance with the recommendations of the genset manufacturer.

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- (h) A proper routine and preventive maintenance procedure for the genset shall be set and followed in consultation with the genset manufacturer.
3. Any of the following institutions shall undertake Type Approval and for verification of Conformity of Production for noise norms for dedicated diesel or diesel and NG or LPG gensets and issue such certificates on compliance of the prescribed norms, namely:-
- (a) The Automotive Research Association of India, Pune (Maharashtra);
 - (b) The International Centre for Automotive Technology, Manesar (Haryana);
 - (c) The Fluid Control Research Institute, Palghat (Kerala);
 - (d) The National Test House, Ghaziabad (Uttar Pradesh);
 - (e) The National Aerospace Laboratory, Bangalore (Karnataka); and
 - (f) The Naval Science and Technology Laboratory, Visakhapatnam (Andhra Pradesh).

C. General Conditions

1. Every manufacturer, importer or assembler (hereinafter referred to as the 'manufacturer') of the diesel and NG or LPG engine (hereinafter referred to as 'engine') for genset application manufactured or imported into India or diesel and NG or LPG genset (hereinafter referred to as 'product'), assembled or imported into India shall obtain Type Approval and comply with the COP of their products for the emission limits which shall be valid for the next COP year or, the date of implementation of the norms specified above, whichever is earlier. Thereafter, manufacturer shall obtain COP approval every COP year. Diesel and NG or LPG kit shall also have independent Type Approval and shall independently comply with COP requirement, as and when notified.
2. These conditions shall apply to all new engines for genset application and products manufactured, assembled or imported into India, as the case may be:

Provided that these rules, shall not apply to, -

- (a) any engine or, product, assembled or manufactured or imported, as the case may be, for the purpose of export outside India; or
 - (b) any engine or product intended for the purpose of sample limited to four in number and to be exported back within three months, and not for sale in India.
3. Every manufacturer of engine or product, as the case may be, shall have valid certificates of Type Approval and COP for each COP year, for all engine models being manufactured or, for all engine or product models being imported, after the effective date of the emission limits, as specified above and CPCB shall develop system and procedure to monitor the norms and COP year.
 4. Every manufacturer shall submit its engine or products, as the case may be, for the verification of conformity of production for emission and noise, by any of the institutions, as applicable, every COP year.
Note:- The term COP year, duty cycle and any other requirement for compliance of Type Approval and COP shall be prescribed in the system and procedure to be developed by the Central Pollution Control Board.
 5. No person shall manufacture, sell, import or use an engine for genset application or any product which is not having a valid Type Approval certificate and certificate of COP referred to in sub - paragraph (3) above.
 6. All the engines, individually or as part of the product shall be clearly engraved as diesel and NG genset Engine or diesel and LPG genset engine on the cylinder block, as the case may be.
 7. The engine or the product shall be affixed with a conformance label meeting the following requirements, namely:-
 - (a) the label shall be durable and legible;
 - (b) the label shall be affixed on a part necessary for normal operation of the engine or the product and not normally requiring replacement during the life of the engine or the product.
 8. The conformance label shall contain the following informations, namely:-
 - (a) Name and address of the manufacturer of engine or product, as the case may be;
 - (b) Statement that the engine or product conforms to the Environment (Protection) Rules, 1986;
 - (c) Type Approval Certificate number;

Public Information Officer
Central Pollution Control Board
Ministry of Environment, Forest and Climate Change
Government of India

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- (d) Date of manufacture of engine and the product or in case of import, the date of import of the engine and the product; and
- (e) Rated speed and corresponding gross power in kW.
9. (a) The Central Pollution Control Board shall be the nodal agency for implementation of these rules;
- (b) In case of any dispute or difficulty in implementation of these rules, the matter shall be referred to the nodal agency;
- (c) The nodal agency shall constitute a Standing Committee for emission related issues and a National Committee for noise related issues, respectively, to advise it on all matters related to the implementation of these rules including disputes, if any.
10. (a) All genset engines operating on diesel and NG or LPG shall be tested for Type Approval and COP of emission and noise limits compliance as per system and procedure published from time to time by the Central Pollution Control Board.
- (b) The Central Pollution Control Board may develop or as the case may be, revise the compliance and testing procedure allowing a time for a period of six months for all concern.
- (c) The institutes referred to in paragraph A and B above shall submit the testing and certification details in respect of emission and, or, noise, as applicable, to the Central Pollution Control Board, annually and the Central Pollution Control Board shall be free to depute its officials to oversee the testing.
11. All genset engines operating on diesel and NG or LPG shall comply safety requirements.
12. The specification of commercial fuel applicable for diesel and NG or LPG shall be applicable for vehicles run on diesel and NG or LPG in the area where product shall be operated, from time to time, as per the policy of the Government of India.
13. All the details of engine components or part responsible for the emission performance shall be clearly marked in English language."

JF.NO.-Q-15017/5/2012-CPW]

Dr. RASHID HASAN, Advisor

Note .—The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (1), vide number S.O. 844(E), dated the 19th November, 1986 and subsequently amended vide the following notifications, namely:-

S.O. 433(E), dated the 18th April 1987; G.S.R. 176(E), dated the 2nd April, 1996; G.S.R. 97(E), dated the 18th February, 2009; G.S.R. 149(E), dated the 4th March, 2009; G.S.R. 543(E), dated the 22nd July, 2009; G.S.R. 739(E), dated the 9th September, 2010; G.S.R. 809(E), dated, the 4th October, 2010; G.S.R. 215(E), dated the 15th March, 2011; G.S.R. 221(E), dated the 18th March, 2011; G.S.R. 354(E), dated the 2nd May, 2011; G.S.R. 424(E), dated the 1st June, 2011; G.S.R. 446(E), dated the 13th June, 2011; G.S.R. 152(E), dated the 16th March, 2012; G.S.R. 266(E), dated the 30th March, 2012; and G.S.R. 277(E), dated the 31st March, 2012; and G.S.R. 820(E), dated the 9th November, 2012; G.S.R. 176(E), dated the 18th March, 2013; G.S.R. 535(E), dated the 7th August, 2013; G.S.R. 771(E), dated the 11th December, 2013; G.S.R. 2(E), dated the 2nd January, 2014; G.S.R. 229(E), dated the 28th March, 2014; G.S.R. 232(E), dated the 31st March, 2014; G.S.R. 325(E), dated the 07th May, 2014; G.S.R. 612(E), dated the 25th August 2014; G.S.R. 789(E), dated the 11th November 2014; S.O. 3305(E), dated the 7th December, 2013; S.O. 4(E), dated 1st January 2016 and lastly amended vide notification G.S.R. 35(E), dated 14th January 2016.

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Minutes of the meeting chaired by the Chief Secretary on 23/05/2022 to review the implementation of the Noise Pollution (Regulation & Control) Rules, 2000 in the State.

The meeting chaired by the Chief Secretary commenced at 12:00 noon. The List of Officers who attended the meeting is appended.

Chief Secretary reviewed the decisions of the previous meetings taken in the matter of implementation of Noise Pollution (Regulation & Control) Rules, 2000 in the State. Chief Secretary also conveyed that Hon'ble Chief Minister has directed the Departments/Authorities to ensure implementation of Rules and to workout a road map for implementation and this meeting is based on the above direction. Chief Secretary expressed concern in the prevalence of noise pollution that is capable of badly affecting the physical and mental health of the people if left unregulated. Our society needs to be made constantly aware of the right of all citizens for safe environment and the need to regulate the activities in all sectors so as not to cause disturbance, nuisance or injury to any other citizens.

The following recommendations were made after discussions.

1. Permit for Loudspeakers/public address systems:

The use of cone speakers were banned by the Hon'ble Supreme Court in July 2005. Chief Secretary directed to ensure that such banned items are not available for sale/rent in the State. Departments have to ensure that the program proponents have obtained necessary permission for the use of loud speakers/ public address systems. No use of loudspeakers / public address systems shall be allowed without obtaining necessary

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PUBLIC INFORMATION OFFICER
STATE POLLUTION CONTROL BOARD
THERMOMETER BUILDING, 335 IND



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permissions. While issuing permissions for loudspeakers/ public address systems the Authorities must specify the sound limits permissible / applicable. It is explicitly directed in the order dated 30/09/2021 issued in WPC No. 7261/2017 that while granting permission for loud speakers all statutory provisions shall be complied with. Compliance of this order has to be ensured by the Home Department and State Police. While granting permissions the authorities may also make the licensee aware of the penal and monetary fines applicable in case of violation of norms.

(Action: HOME, State Police Chief)

2. Compensation regime for violation of Noise Rules:

In 2020, the Hon'ble National Green Tribunal, Principal Bench, New Delhi have issued order dated 01/12/2020 in OA No. 249/ 2020 & connected cases, wherein compensation regime suggested by the Central Pollution Control Board for violation of Noise Rules was approved with modifications, to be implemented pan India and compliance reports were directed to be filed by all States / UTs. It was also informed during the meeting that the Central Pollution Control Board (CPCB) has issued orders to the State Pollution Control Board for directing the designated authorities in the State for implementing the compensatory regime as directed by National Green Tribunal. Instructions were issued to State Police from SPCB in this regard. ACS, Environment Department may look into the aspect in detail and shall facilitate necessary action at Government level in coordination with Home Department for speedy implementation of Compensation regime in the State.

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(Action: Additional Chief Secretary, Environment, Home Department)

3. Procurement of Sound Level Meters:

Inspector General of Police, Traffic & RSM informed that the proposal for purchasing sound level meters has not been approved. Chief Secretary advised to send new proposals for the current year.

(Action: HOME, State Police Chief)

4. Electronic compliant redressal mechanism:

Inspector General of Police, Traffic & RSM conveyed that District Magistrates and Police officers of the rank of DySP /Superintendent of Police and Commissioners are the authorities responsible to implement the Noise Pollution (Regulation & Control) Rules, 2000 and that this may bring practical difficulties in implementing the Rules effectively as the roles cannot be further sub-delegated. Chief Secretary informed that vide letter No. F1/77/2022/Home dated 28/04/2022 of the Home (F) Department addressed to the State Police Chief, it was requested to ensure that the Police App have provisions to approve the cases by DySP and to issue orders to SHOs for taking action against the Rules violators. With effective planning, electronics systems can be utilized to obtain requisite approvals. It was also requested to provide necessary provision to general public for giving online complaints.

(Action: HOME, State Police Chief)

5. Illegal alteration of Vehicles:

Additional Transport Commissioner, Motor Vehicles Department informed that actions are being taken against the owners of illegally

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altered vehicles. Special drives were carried out and several cases were registered. Chief Secretary appreciated the action of Motor Vehicles Department and instructed them to carry out the drive in all Districts. Chief Secretary also directed the Motor Vehicles Department to identify the establishments/workshops which are engaged in illegal alteration of vehicles. Legal provisions under Motor Vehicle Act/Rules may be enforced and those engaged in such illegal alterations may be booked under law. If additional provisions can be made by the State Government by way of State Laws to curb such activities that may be explored. Additional Transport Commissioner, Motor Vehicles Department requested to constitute a combined action force including Police Authority to enhance the special drives against the illegally altered vehicles. Chief Secretary opined that the Home Department/ Police HQ may look into the matter.

(Action: Home, Transport, State Police Chief)

The meeting came to close by 01:00 p.m.

Chief Secretary

*Pravin
Joshi*

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KERALA STATE POLLUTION CONTROL BOARD
പട്ടം സംസ്ഥാന മലിനീകരണ നിയന്ത്രണ ബോർഡ്
Pattom P.O., Thiruvananthapuram - 695 004
പട്ടം പി.ഒ., തിരുവനന്തപുരം - 695 004

File No. KSPCB/347/2022-EE-3

Dated: 13-12-2024

From

The Chairperson

To

The Inspector General of Police
Social Policing & Traffic
Police Head Quarters,
Vazhuthacaud, Thiruvananthapuram

Sub: Direction under section 5 of Environmental Protection Act of 1986 regarding implementation of Environmental Compensation Regime of Noise Pollution- reg

- Ref: 1. PCB/HO/EE3/NGT/O.A.No.681/2018/24/19(M) dated 19/05/2021
2. Minutes of the meeting convened by ACS, Env't. Dept. on 25.11.2022
3. Government letter no A3/241/2019-ENV'T dated 05.01.2023
4. This office letter no. PCB/HO/EE3/NGT/O.A.NO.681/2018/30/2019 dated 06.01.2023

Sir,

Kind attention is invited to the subject matter. This letter is issued to notify the corrections in the direction issued vide reference (1). The word "possession" in the direction may please be read as "procession". The time limit prescribed for bursting fire crackers- "New year and Christmas- 11:55 pm to 12:30 pm" is corrected as "New year and Christmas- 11:55 pm to 12:30am". It may also please be noted that as per ref 2&3, Board has submitted draft scheme regarding implementation of environmental compensation regime for noise pollution to Govt vide ref (4).

Yours faithfully,

CHAIRPERSON

Handwritten signature
JOSEMAN-7

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